

REQUEST FOR PROPOSALS
TO PROVIDE
GROUP UNIVERSAL LIFE INSURANCE (GUL) BENEFITS
(Including AD&D and Optional Term Life, for the Closed Group)



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December 2016

CITY OF NEW YORK
OFFICE OF LABOR RELATIONS
MANAGEMENT BENEFITS FUND

**THE CITY OF NEW YORK
OFFICE OF LABOR RELATIONS
MANAGEMENT BENEFITS FUND
REQUEST FOR PROPOSALS
TO PROVIDE GROUP UNIVERSAL LIFE INSURANCE (GUL) BENEFITS
PIN 214150000431**

Table of Contents

SECTION I	RFP TIMELINE	4
SECTION II	SUMMARY OF THE REQUEST FOR PROPOSALS	5
SECTION III	SCOPE OF SERVICES	6
SECTION IV	FORMAT AND CONTENT OF THE PROPOSAL	14
SECTION V	PROPOSAL EVALUATION AND CONTRACT AWARD PROCEDURES	25
SECTION VI	GENERAL INFORMATION TO PROPOSERS	26
SECTION VII	ANTICIPATED PROVISIONS OF THE CONTRACT	28
SECTION VIII	APPENDIX A: THE GENERAL PROVISIONS GOVERNING CONTRACTS FOR CONSULTANTS, PROFESSIONAL, TECHNICAL, HUMAN, AND CLIENT SERVICES	34
ATTACHMENT 1	PROPOSAL COVER LETTER	35
ATTACHMENT 2	ACKNOWLEDGMENT OF ADDENDA	36
ATTACHMENT 3	PRICE PROPOSAL FORMAT	37
EXHIBIT I	MEMBER SALARY UPDATE FILE FORMAT	38
EXHIBIT II	CARRIER RECONCILIATION FILE FORMAT	39
EXHIBIT III	CARRIER BILLING FILE FORMAT	40
EXHIBIT IV	PAYMENT FILE FORMAT TO CARRIER	41
ATTACHMENT A	MEMBER CENSUS	
	A.1 – AGE/SEX/DEPENDENT RATIO –ACTIVES	42
	A.2 – AGE/SEX/DEPENDENT RATIO – RETIRED	43
	A.3 – AGE/SEX/DEPENDENT RATIO – TOTAL	44
	A.4 – RESIDENCE	45
	A.5 – RESIDENCE BY STATE	46
ATTACHMENT B	CURRENT GUL PLAN PARTICIPATION	48
ATTACHMENT C	FIVE-YEAR RATE HISTORY	49
ATTACHMENT D	PREDECESSOR OPTIONAL TERM LIFE INSURANCE PLAN PARTICIPATION	51
ATTACHMENT E	PREMIUM & CLAIMS EXPERIENCE	53
ATTACHMENT F	CASH ACCUMULATION FUND CONTRIBUTIONS	57
ATTACHMENT G	VOLUME OF INSURANCE BY AGE	58
ATTACHMENT H	SECTION C OF THE FUND’S BENEFITS BOOKLET: “GROUP UNIVERSAL LIFE INSURANCE”	60
ATTACHMENT I	DOING BUSINESS DATA FORM–CONTRACT PROPOSERS and Q&A: THE DOING BUSINESS -DATA FORM & DOING BUSINESS DATABASE.	61
ATTACHMENT J	WHISTLEBLOWER PROTECTION EXPANSION ACT RIDER	62
ATTACHMENT K	IRAN DIVESTMENT ACT COMPLIANCE RIDER FOR NYC CONTRACTORS	63
ATTACHMENT L	SCHEDULE B: SUBCONTRACTOR UTILIZATION PLAN/WAIVER APPLICATION	64
ATTACHMENT M	SUBCONTRACTOR COMPLIANCE FORM	65
ATTACHMENT N	NYC HIRING AND EMPLOYMENT RIDER	66
ATTACHMENT O	PAID SICK LEAVE LAW RIDER	67

**THE FOLLOWING REQUIRED DOCUMENTS MUST BE DOWNLOADED FROM THE OLR WEB SITE
<http://www1.nyc.gov/site/olr/about/about-rfp.page> OR OBTAINED FROM THE MBF ADMINISTRATIVE OFFICE AT 22
CORTLANDT ST, 28TH FLOOR, NEW YORK, NY 10007:**

- 1) APPENDIX A - The General Provisions Governing Contracts FOR CONSULTANTS, PROFESSIONAL, TECHNICAL, HUMAN and CLIENT Services.
- 2) Doing Business Accountability Project FAQ & Data Form
- 3) Iran Divestment Act Rider
- 4) Subcontractor Compliance Notice

**IN ADDITION, PROPOSERS ARE ADVISED TO RETURN TO THE PLAN’S WEB SITE PERIODICALLY TO CHECK
FOR ANY POSTED ADDENDA TO THE RFP.**

AUTHORIZED AGENCY CONTACT PERSON

Proposers are advised that the Authorized Agency Contact Person for all matters concerning this Request for Proposals is:

Name: Georgette Gestely
Title: Director
Mailing Address: Office of Labor Relations
22 Cortlandt Street, 28th Floor
New York, NY 10007

Fax #: (212) 306-7376

Web site Address: www.nyc.gov/olr

Please be advised that you must register your company as an RFP recipient by sending your company's information to us.

You can register your company online at <http://www1.nyc.gov/site/olr/about/about-rfp.page>. This link will take you to the Office of Labor Relations' "**Request For Proposals**" page. Click on the "**Register Here**" link where you can register your company with the Fund.

By registering, you will ensure that your company will be informed of any addenda which may be released relative to the Fund's RFPs. Registration will also allow the Fund to add your company to its Vendor lists, enabling the Fund to inform you of future solicitations. It is each Proposer's responsibility to register and check for updates, addenda, and additional information relative to this RFP.

You may also pick up a hard copy of this RFP from the Office of Labor Relations, Management Benefits Fund Administrative Office, 22 Cortlandt Street, 28th Floor, New York, New York 10007, between the hours of 9:00AM and 4:00PM on regular business days.

Note: If you have any inquiries regarding this Management Benefits Fund (MBF) RFP, please **fax** them to the attention of Georgette Gestely at [212-306-7376](tel:212-306-7376) for a response. MBF will not respond to inquiries that are not faxed.

SECTION I – RFP TIMELINE

A. Release Date of this Request for Proposals: **December 29, 2016**

B. Pre-Proposal Conference: TBD

C. Deadline for the Submission of Questions: **February 1, 2017**

Please **fax** all inquiries to the attention of Georgette Gestely at [212-306-7376](tel:212-306-7376) for a response.

D. Proposal Due Date and Time and Location:

Date: February 9, 2017

Time: 2:00 P.M. Eastern Time

Location: Proposals shall be submitted to The Management Benefits Fund located at:

Office of Labor Relations, Management Benefits Fund
22 Cortlandt Street, 28TH Floor
New York, NY 10007

E-mailed or faxed proposals will not be accepted by the Fund. One hard copy of the Technical Proposal and one hard copy of the Price proposal, together with copies of all related documents for each, are required. You must also provide a Flash Drive that includes a PDF copy of the original Technical Proposal and a separate PDF of the original Price Proposal, with all related documents for each.

Proposals received at this location after the Proposal Due Date and Time are late and shall not be accepted by the Management Benefits Fund (the “Fund”), except as provided under New York City’s Procurement Policy Board Rules.

The Agency will consider requests made to the Authorized Agency Contact Person to extend the Proposal Due Date and Time prescribed above. However, unless the Agency issues a written addendum to this RFP that extends the Proposal Due Date and Time for all Proposers, the Proposal Due Date and Time prescribed above shall remain in effect.

Should your organization decide not to proceed with submitting a formal bid or proposal (i.e. decline to bid), the Fund would appreciate your prompt notification, in writing, to the RFP contact given on page 3.

E. Anticipated Contract Start Date: January 1, 2018

SECTION II - SUMMARY OF THE REQUEST FOR PROPOSALS

A. Purpose of RFP

The Management Benefits Fund (hereinafter referred to as “MBF” or “Fund”) of the City of New York, which is a division of the Office of Labor Relations (“OLR”), is seeking an appropriately qualified vendor to:

- Insure and assume full responsibility for the administration of the Fund’s Group Universal Life Insurance/Accidental Death & Dismemberment Plan (“Plan”), including, but not limited to, administration of plan provisions, addition of new participants, collection of premiums (for direct-billed participants), and payment of death claims. The Plan currently offers coverage to approximately 28,500 active and retired members, and their spouses, domestic partners, and eligible dependent children, as of December 2016. The Fund currently offers the Plan on an employee-pay-all basis, for members to enroll themselves, spouses, and eligible dependent children for this insured group coverage. Coverage is portable and can be continued upon retirement from City employment or termination of Fund membership.
- Insure and assume full responsibility for the continuing administration of the Fund’s “closed” Optional Group Term Life Insurance plan (“Optional Plan”), including, but not limited to, administration of plan provisions, collection of premiums through direct billing, and payment of death claims. The Optional Plan covers approximately 42 members, as of June 30, 2016, who retired from City employment prior to May 1, 1990, and who have continued to maintain their coverage.

Proposers should be able to demonstrate at least five (5) years’ experience providing the full range of services contained in the Plan Specifications for group accounts of comparable size and have current and on-going accounts of comparable types of programs.

B. Anticipated Contract Term

It is anticipated that the term of the contract awarded from this RFP will be for a five (5) year period commencing January 1, 2018 and terminating December 31, 2022. The contract shall additionally include up to two (2) one-year renewals at the sole option of the City.

C. Anticipated Payment Structure

It is anticipated that the payment structure of the contract awarded from this RFP will be based on deliverables in combination with performance outcome measures (e.g., assessment of liquidated damages where services are not provided in a timely manner). However, the Agency reserves the right to select any payment structure that the City deems to be in the best interest of the Fund’s members.

D. Minimum Qualification Requirements

The following Minimum Qualification Requirement has been established for this procurement:

- The Proposer must, at the time of proposal submission, be licensed or authorized to conduct business in the State of New York.

The Proposer must demonstrate compliance by attaching copies of documentation required by the State of New York for doing business in the State, to **Attachment 1** – Proposal Cover Letter. This may include a license or certificate to conduct business, or a registration or other required documentation for doing business in New York State that may apply to the Proposer. Proposals that fail to meet this requirement will be rejected and deemed non-responsive.

E. Program Description

Section C of the Benefits Booklet for the MBF, entitled “Group Universal Life Insurance” (**Attachment H**), can be found on the Fund’s Web site at: <http://www1.nyc.gov/assets/olr/downloads/pdf/mbf/gul-section-of-the-booklet.pdf>

SECTION III - SCOPE OF SERVICES

A. Agency Goals and Objectives

The Agency's goals and objectives for this RFP are to provide a high quality and responsively administered Group Universal Life Insurance Program to the Fund's active and retired members, and their eligible dependents, and assume full responsibility over the Optional Term Group Life Insurance Plan, which is a closed group.

B. Agency's Assumptions Regarding Contractor Experience

The Agency's assumptions regarding the type of experience most likely to achieve the goals and objectives set out above are:

1. The Proposer and its staff will have at least five (5) years' experience providing the full range of services contained in this Section for group accounts of comparable size.
2. The Proposer and its staff will have current and on-going accounts of comparable types of programs.
3. The Proposer will provide resumes or job descriptions for key staff position qualifications, including an account executive and on-site representative.
4. The Proposer will provide the number and names of clients acquired and lost during the last three (3) years.

C. Agency Assumptions Regarding Organizational Capability

The Agency's assumptions regarding the type of organization most likely to achieve the goals and objectives set out above are:

1. The Proposer will have unique strengths and a substantial history of involvement in the Group Universal Life Insurance business.
2. The Proposer will have a primary business objective and limitations on the number of new clients it intends to accept.
3. The Proposer would be fiscally sound, have strong financial statements and be well-rated by one or more of the organizations listed below:
 - a) Standard and Poor's (S&P)
 - b) Fitch
 - c) A.M. Best
 - d) Moody's

D. Agency Assumptions Regarding Proposer Approach

The Agency's assumption regarding which approach will most likely achieve the goals and objectives set out above is that the Proposer would be required to provide the following: (Note: The Proposer will be asked to confirm compliance with these assumptions in **Section IV.A.2.c. Proposed Approach**, in the RFP response.)

1. General

- (a) The Proposer will insure and administer the GUL/AD&D Program in accordance with Section C of the Fund's benefits booklet, entitled "Group Universal Life Insurance."
<http://www1.nyc.gov/assets/olr/downloads/pdf/mbf/gul-section-of-the-booklet.pdf>
- (b) The Proposer would accept all contract provisions as included in the RFP.
- (c) The Proposer would provide the required on-site support staff as described in **Section III.D.8.**
- (d) The Proposer would comply with all program specifications in this RFP, or propose alternate program specifications.
- (e) The Proposer's proposal would be firm for an effective date of January 1, 2018.

- (f) The Proposer would underwrite this plan without payment of commissions.
- (g) The Proposer would provide currently insured employees continued coverage on a no-loss, no-gain basis and would indicate that any actively-at-work and hospital confinement restrictions will be waived for current insureds.
- (h) The Proposer would review plan documents, conduct the installation process, furnish assistance in all areas of account management and plan administration (including plan design, review of utilization, individual claim problem-solving, and legal issues), and provide enrollment statistics and claims reports, all at no additional cost to the Fund.
- (i) The Proposer would:
 - 1. Insure all claims incurred on and after the contract effective date.
 - 2. Be responsible for benefit determination, including approvals, denials, and pended claims, based on the receipt of complete documentation of each claim.
 - 3. Generate benefit checks or EFT within thirty (30) days of the approval of claims. Denials should also be communicated within thirty (30) days.
 - 4. Be responsible for overpayment recovery procedures, including:
 - a. lump-sum refunds
 - b. installment refunds, and
 - c. legal action when unable to obtain refunds.
- (j) The GUL and AD&D plan designs and funding arrangement should be replicated. Any plan design deviations (either where the design cannot be insured, or administered, where manual adjudication would be required, or where the design is determined to be non-compliant with state or federal law) should be shown in a separate "Proposal Deviations" Exhibit.

2. Group Term Coverage Participation

- (a) The Proposer would provide Accidental Death and Dismemberment Insurance (AD&D) and dependent coverage.
- (b) The Proposer would continue the current arrangement, whereby each year during the annual enrollment period, existing GUL plan participants can increase coverage by up to one-times (1x) the participant's salary without Evidence of Insurability (EOI), up to the guaranteed amount of the lesser of three-times (3x) the participant's salary or \$500,000. The Proposer would also offer a general open enrollment period upon plan inception and would provide the parameters of the general open enrollment and indicate any impact on quoted premium rates of offering a one-time general open enrollment period.
- (c) The Proposer will process member data, including salary update information, provided by the Fund within no more than two (2) business days of receipt of data from the Fund. The Proposer would adhere to monthly schedules developed by the Fund with regard to submission dates for new enrollments, enrollment changes and terminations.
- (d) The Proposer would have appropriate restrictions and/or conditions on receipt of benefits in the event of a death of a member.
- (e) The Proposer would guarantee its premium rates for at least five (5) years. In addition, the Proposer should indicate whether or not it is prepared to offer a rate cap for each one-year renewal equal to the cost of living index (CPI index) at the time of renewal.
- (f) The Proposer would have an adequate advance notice period of 120 calendar days for rate increases.
- (g) The Proposer would have an adequate experience rating process for renewal rates.

- (h) The Proposer would have adequate reserve requirements.
- (i) The Proposer would have minimum participation requirements for underwriting the Group Term Life and Cash Accumulation Fund portions of the plan.
- (j) The Proposer would provide a terminal illness benefit.
- (k) The Proposer would provide a portability option.

3. Cash Accumulation Fund (CAF) Participation

- (a) The Proposer would have adequate capabilities to accept transfers from the current CAF balances of the Fund's current GUL Program.
- (b) With regard to interest earnings:
 - 1. The Proposer would have an adequate interest rate to be paid on contributions to the CAF and an adequate period for which this rate is guaranteed.
 - 2. The Proposer will frequently credit a member's CAF with interest earned.
 - 3. The Proposer would offer multiple investment options.
- (c) The Proposer would have a reasonable method of establishing continuing contribution levels.
- (d) With regard to loans from the CAF:
 - 1. The Proposer would have a reasonable interest rate that will be charged on loans taken from a CAF.
 - 2. The Proposer would have a reasonable interest rate that is credited on loaned amounts outstanding.
 - 3. The Proposer would not offer a transaction charge for arranging a loan.
- (e) With regard to withdrawals taken from the CAF:
 - 1. The Proposer will allow withdrawals.
 - 2. The Proposer will have a reasonable priority of money withdrawn (i.e., interest earning, contributions).
 - 3. The Proposer will not have a transaction charge for withdrawals.

4. Plan Specifics

- (a) With regard to the portability of the plan:
 - 1. The Proposer would continue the policy with no change in term insurance rates when membership in the Fund ceases because of termination of employment or ineligibility because of position reclassification.*
 - 2. The Proposer would continue the policy into retirement without changes in rates or other conditions.*

*(except when the member has less than one year of participation)
- (b) With regard to policy fees and charges:
 - 1. The Proposer would indicate the nature and basis of any policy fees and charges including transaction charges, premium taxes, administrative or other fees which are deducted or charged in addition to the group term insurance premium.
- (c) With regard to termination of participation:

1. The Proposer would provide notice requirements for (i) individual termination of policy participation and (ii) group termination.
2. The Proposer would not assess penalties for termination of policy participation (i.e. loss of interest, transaction fees, other termination charges).
3. For the CAF, the Proposer will allow transfer of cash values to another carrier without penalty. If not, then the Proposer would describe the penalty.

5. **Communications and Administration**

- (a) The Proposer would describe their approach to each of the following: (i) Proposer's procedures for communicating the plan to members as a group; (ii) Proposer's individual counseling as to member contribution and earnings options; (iii) Proposer's manner of distribution of plan documents, including certificate of coverage and booklets, if any; and (iv) Proposer's responses to individual member's questions within ten (10) business days.
- (b) The Proposer would provide illustrations and indicate frequency of provision of member statements including, but not limited to, coverage, expenses, earnings, loans, withdrawals, and cash values, for both the GUL and CAF programs.
- (c) The Proposer would have procedures in place concerning the following:
 1. Acceptance and processing of enrollment forms;
 2. Security and privacy procedures for all records that would be in compliance with HIPAA and all other applicable federal and state privacy and security laws and regulations;
 3. Changes in beneficiary, coverage, contribution levels, lump sum payments, withdrawals, loans, and terminations;
 4. Calculation of payroll deduction amounts, including re-spreading premium amounts for missed payroll deductions, acceptance of premium remittance, direct billing for retirees, updates in coverage and premiums due to changes in annual salary and age; and
 5. Processing of death benefits.
- (d) The Proposer would provide quarterly reports to the Fund regarding participation, utilization, individual account status and death claims.
- (e) The Proposer would utilize a customer satisfaction survey that will be used to survey members in this program. The Proposer would have procedures in place if the survey finds member dissatisfaction, to address how such dissatisfaction will be remedied. The Proposer will ensure that, at a minimum, 95% of respondents will rate the program as good to excellent on the customer satisfaction survey.
- (f) The Proposer would provide all forms regarding beneficiary claims and any other relevant forms used in connection with this Program.
- (g) The Proposer would provide a local and/or a toll-free customer service number.
- (h) The Proposer would provide a telephone system(s) that will be operational and available to enrollees 99.5% of the scheduled time from 9:00 a.m. to 5:00 p.m. Eastern Time on business days, except for holidays observed by the Proposer.
 - i. The Proposer will ensure that the average telephone response time to answer the phone by a customer service representative, measured on a monthly basis, will not exceed thirty (30) seconds.
 - ii. The Proposer will ensure that the average number of calls, measured on a monthly basis, which the caller disconnects prior to the call being answered (caller abandons due to lack of response) will not exceed three percent (3%).

- iii. The Proposer will ensure that no more than three percent (3%) of incoming calls, measured on a monthly basis, will be blocked by a busy signal.

6. Reports/Systems/Data Communications

- (a) The Proposer would provide a variety of financial reports to the Fund (indicating frequency) at no additional cost to the Fund. The Proposer would keep such reports, as they relate to the Fund or the Fund's members, confidential. The Proposer would not use any such confidential information for any purpose not directly related to services rendered by it to the Fund and would not release such information to any third party without the express permission of the Fund, except as may otherwise be required by law.
- (b) The Proposer would meet the Fund's systems and data communication requirements as follows:
 - i. The Proposer, using its own database, would accept a full Salary Update file for premium amount update purposes from the Fund as illustrated by **Exhibit I** on an annual basis. The file will be sent via encrypted tunnel electronically to the systems manager. This file will contain an extract of each member record that has been modified since the last file transmission date.
 - ii. The Proposer would advise the Fund of verification of all files received, date received, and date applied to its database, by the Fund's group number, within two (2) working days of receipt. The Proposer will be able to modify MBF members' premium information by the Fund's group number.
 - iii. The Proposer would provide an Eligibility Reconciliation file on a semi-annual basis containing information regarding coverage election and premium amounts for all members. The file will be used to produce exception reports for Proposer correction. **Exhibit II** illustrates the layout of this file.
 - iv. The Proposer would provide a monthly Carrier Billing file in which the Proposer would calculate payroll deductions for active members and their spouses, domestic partners, and dependent children, if any, prior to the Fund's scheduled payroll run. This file would include deductions for new enrollees, premium changes, and terminations. The layout of this file is illustrated by **Exhibit III**.
 - v. The Fund would provide a monthly Payment file to the Proposer which would include the payroll deductions processed through the Fund's payroll system for the previous period so that adjustments can be made, if any, in the next billing cycle. This file would include payment discrepancies, if any, based on previous Carrier Billing files submitted by the Proposer. The layout of this file is illustrated by **Exhibit IV**.
- (c) While the layouts of the above files are tentative, the Proposer would accept the formats, and any changes to the format as deemed necessary by the Fund.
- (d) The Proposer would ensure that accurate management reports will be delivered no later than the agreed upon due date(s).
- (e) The Proposer would provide the on-site representative with access to its member eligibility and claim history system (for inquiry purposes only).
- (f) The Proposer would have the ability to receive and send files electronically via secure means to and from the Fund (including receipt of the Fund's monthly eligibility data. See **Section 6(b)(ii)** above).
- (g) The Proposer would have a primary processing platform to be used (mainframe, minicomputer, LAN, database or file management system).
- (h) The Proposer would have an effective claims processing system for claims administration.

- (i) The Proposer would have security features built into the system, as well as a systems disaster recovery procedures. The Proposer would maintain alternate (back-up) site(s) with sufficient IT infrastructure so that Fund related processes would continue with no interruption. **The Proposer would be in compliance with HIPAA and all other applicable federal and state privacy and security laws and regulations.**
- (j) Should the Proposer's on-site staff be unable to access the City's administrative site due to a disaster, the Proposer would provide space and equipment in the Proposer's office, as well as computers and telephones so that the on-site staff may continue performing the functions described in this RFP, including, but not limited to, responding to member calls and handling database issues regarding this program.

7. Personnel

- (a) The Proposer would assign an Account Executive with primary responsibility for servicing this account, as well as other personnel who will be responsible for this account.
- (b) The Proposer would ensure that this individual will be responsible for only an appropriate amount of production of new business.
- (c) The Proposer would assign an individual to be responsible for the day-to-day servicing of the account.
- (d) The Proposer would assign a number of employees who will be accessible to the Fund and have expertise in administering Group Universal Life insurance benefits.
- (e) The Proposer would have appropriate future plans for staff modification, when necessary, and would provide adequate notification of staff modification or department restructuring to the Fund.
- (f) The Proposer would begin all plan implementation activities in a timely manner prior to October 1, 2017 and, that in order to assume total operational responsibility for the Plan and to be able to provide the benefits effective January 1, 2018, the Proposer would have each of the following in place by no later than December 1, 2017: (i) operational customer service local or toll-free telephone number staffed by trained Customer Service Representatives; (ii) enrollment procedures; (iii) procedures to interface with the seven (7) City of New York payroll systems, through the on-site support staff located at the Fund office to assure accurate and timely payroll deduction processing; (iv) a claims payment system; and (v) claims processing staff.
- (g) The Proposer would have effective policies for controlling workload.
- (h) The Proposer would have effective back-up procedures in the event that key personnel assigned to the Fund's account should leave the firm.
- (i) The Proposer would have effective back-up procedures in the event of a disaster, as well as a backup of all data located offsite.
- (j) The Proposer would permit the MBF to visit the Proposer's operation and call centers site prior to Proposer selection as well as afterwards, if needed.

8. On-Site Support Staff:

- (a) The Proposer would provide one (1) properly trained administrative representative (the "on-site representative") to be located in the Fund's administrative office, at 22 Cortlandt Street, 28th Floor, New York, New York, who will be designated as a primary contact and dedicated full-time, from 9AM to 5PM Eastern Time on all business days, except for holidays observed by the City, to exclusively perform functions under the contract. The on-site representative will be qualified in the area of Group Universal Life insurance to provide on-going support in enrollment, plan administration, and communication. The Fund will make available appropriate workspace for the on-site representative.

- (b) The Proposer would pay the on-site representative on a salaried basis. If, at any time, the Fund believes that the representative is not satisfactorily complying with the requirements of the contract resulting from this RFP to the servicing of the Plan, the Fund will notify the Proposer of the reason for this dissatisfaction. If, after a sixty (60) calendar day period, the Fund believes that the situation has not been corrected to its satisfaction, the Proposer, upon written notification from the Fund, shall withdraw the on-site representative from servicing the Fund. A new on-site representative with appropriate qualifications must be assigned within thirty (30) calendar days to replace the previously withdrawn representative.

The on-site representative employed to provide the above services for the Fund would be employed by the Proposer. While said representative will be located in the Fund's office, the representative will not be an employee of the Fund. The Proposer shall set such on-site representative's compensation and duties, and shall supervise the work and performance. The Fund will perform time monitoring of said on-site representative for the Proposer according to the Proposer's rules. The Fund will advise the Proposer of any dissatisfaction with the on-site representative's performance of the duties as set forth in the contract; however, the day-to-day conduct of the on-site representative's functions will be the responsibility of the Proposer. Salary for the on-site representative is anticipated to be competitive to salaries in the marketplace for individuals who perform the same type of roles as the on-site-representative, including compensation and fringe benefits.

- (c) The on-site representative would provide information, member assistance and claims filing services either in writing, on the telephone or via walk-in visits. Such services would include, but not be limited to:
- i. responding to member inquiries;
 - ii. providing clarification of plan rules and regulations;
 - iii. assistance in enrollment, implementation of changes, termination, and implementation of the direct billing process;
 - iv. serving as payroll liaison responsible for: checking application of accurate payroll deductions and payroll deduction reconciliation for seven (7) payrolls; securing and submitting payroll deduction files, reports and checks to Proposer's service center; processing and follow-up of late entrant coverage reports.
- (d) In the event that the Fund determines that the minimum staffing level stated above is insufficient to meet the Fund's needs, the Fund and the Proposer will negotiate a change in contract terms to include additional staff.

E. Agency Assumptions Regarding Payment Structure: Performance Guarantees and Penalties

It is anticipated that the payment structure of the contract awarded from this RFP will be on an employee-pay-all basis against which the Fund may assess liquidated damages if services are not provided by the Vendor in a timely manner. Vendors will provide monthly bills to the Fund indicating the amount of all premiums charged, based on the premium rates for each year of the contract term and each of the optional contract years, if applicable. However, the Fund reserves the right to select any payment structure that is in the Fund's best interest.

The Proposer must contractually agree to Performance Guarantees in areas critical to the Plan's cost effectiveness and quality of service. The Proposer must agree to guarantee that all of the performance guarantees described in Section IV(A)(3)(b) of the Price Proposal section, and required by this RFP will be met or exceeded, and propose financial penalties for failure to meet each guarantee. Performance audits will be based upon the performance guarantees set forth in the contractual agreement resulting from this RFP.

F. Program Description

Section C of the Benefits Booklet for the Management Benefits Fund, entitled "Group Universal Life Insurance" (**Attachment H** or <http://www1.nyc.gov/assets/olr/downloads/pdf/mbf/gul-section-of-the-booklet.pdf>) provides a current description of the program and plan provisions. The existing GUL plan design and funding arrangement should be replicated.

G. Compliance with Local Law 34 of 2007

Pursuant to Local Law 34 of 2007, amending the City's Campaign Finance Law, the City established a computerized database containing the names of any "person" that has "business dealings with the city" as such terms are defined in the Local Law. For the purposes of the database, Proposers are required to complete **Attachment I - Doing Business Data Form**, from the website, and return it with this proposal, and should do so in a separate envelope. (If the Proposer is a proposed joint venture, the entities that comprise the proposed joint venture must each complete a Data Form.) If the City determines that a Proposer has failed to submit a Data Form or has submitted a Data Form that is not complete, the Proposer will be notified by the Agency and will be given four (4) calendar days from receipt of notification to cure the specified deficiencies and return a complete Data Form to the Agency. Failure to do so will result in a determination that the proposal is non-responsive. Receipt of notification is defined as the day notice is e-mailed or faxed (if the Proposer has provided an e-mail address or fax number), or no later than five (5) days from the date of mailing or upon delivery, if delivered.

H. Whistleblower Protection Expansion Act Rider

Local Law Nos. 30 and 33 of 2012, codified at sections 6-132 and 12-113 of the New York City Administrative Code, the Whistleblower Protection Expansion Act, protect employees of certain City contractors from adverse personnel action based on whistleblower activity relating to a City contract and require contractors to post a notice informing employees of their rights. Please read the Whistleblower Protection Expansion Act Rider **Attachment J**, carefully.

I. Compliance with the Iran Divestment Act

Pursuant to State Finance Law Section 165-a and General Municipal Law Section 103-g, the City is prohibited from entering into contracts with persons engaged in investment activities in the energy sector of Iran. Each Proposer is required to complete the attached Bidders Certification of Compliance with the Iran Divestment Act, certifying that it is not on a list of entities engaged in investments activities in Iran created by the Commissioner of the NYS Office of General Services. If a Proposer appears on that list, the Agency/Department will be able to award a contract to such Proposer only in situations where the Proposer is taking steps to cease its investments in Iran or where the Proposer is a necessary sole source. Please refer to **Attachment K** for information on the Iran Divestment Act required for this solicitation and instructions on how to download and complete the required form, from the website, and see <http://www.ogs.ny.gov/About/regs/ida.asp> for additional information concerning the list of entities.

J. Subcontractor Compliance Notice

The selected vendor will be required to utilize the City's web based system to identify all subcontractors in order to obtain subcontractor approval pursuant to PPB Rule section 4-13, and will also be required to enter all subcontractor payment information and other related information in such system during the contract term. Please see **Attachments L & M** to download the subcontractor compliance notice from the website, and review it as it relates to competitive solicitations.

K. Compliance with HireNYC and Reporting Requirements

The Hiring and Employment Rider shall apply to contracts valued at \$1 million or more for all goods, services and construction except human services contracts that are subject to the Public Assistance Hiring Commitment Rider. The Rider describes the Hire NYC process and obligations, including reporting requirements throughout the life of the contract. The Hire NYC process requires contractors to enroll with the Hire NYC system within thirty days after the registration of the contract subject to this solicitation, to provide information regarding all entry to mid-level job opportunities arising from this contract and located in New York City, and to agree to interview qualified candidates from HireNYC for those opportunities. The Rider also includes reporting requirements unrelated to HireNYC. Please refer to **Attachment N** for the Rider.

L. Compliance with the Paid Sick Leave Law Rider

The Paid Sick Leave Law Rider, originating from the Paid Sick Leave Law ("PSLL"), requires covered employees who annually perform more than 80 hours of work in New York City to be provided with paid sick time. Please refer to **Attachment O** for the Rider.

SECTION IV - FORMAT AND CONTENT OF THE PROPOSAL

Instructions: Proposers should provide all information required in the format below. The proposal should be provided in two formats, as follows:

- 1) The proposal should be typed on both sides of 8 ½" X 11" paper. The City of New York requests that all proposals be submitted on paper with no less than 30% post-consumer material content, i.e., the minimum required fiber content level for reprographic papers recommended by the United States Environmental Protection Agency (for any changes to that standard please consult: the Final Paper Products Recovered Materials Advisory Notice (RMAN)). Pages must be paginated and submitted in binder format. Please answer the questions in the order in which they are presented in this RFP. One original hard copy of the Technical proposal and one separate original hard copy of the Price proposal must be provided, both in binder form.
- 2) In addition to the hard copies, all of the proposal documents must also be provided on a flash drive, comprised of the original technical proposal and the original price proposal, as separate PDFs, cover letter, and any other required or related documents. Please note that the flash drive will be retained by MBF and not returned to the Proposer.

The proposal will be evaluated on the basis of its content, not length. Failure to comply with any of these instructions will make the proposal non-responsive.

A. Proposal Format

1. Proposal Cover Letter

The Proposal Cover Letter form (**Attachment 1**) transmits the Proposer's Proposal Package to the Agency. It should be completed, signed and dated by an authorized representative of the Proposer, and must describe and include the documentation referred to in Section II(D) to demonstrate compliance with the minimum qualification requirements described therein.

2. Technical Proposal

The Technical Proposal is a clear, concise narrative, which addresses the following:

a. Experience

Describe the successful relevant experience of the Proposer, and the proposed key staff in providing the work described in the Scope of Services section of this RFP. Specifically address the following:

1. Demonstrate the Proposer's experience in insuring and administering Group Universal Life insurance programs. Include the number of plans for which the Proposer provides Group Universal Life insurance, including the approximate number of members in each plan, and the number of years the Proposer has been providing this type of insurance.
2. Demonstrate that the Proposer has at least 5 years' experience in administering Group Universal Life insurance.
3. Provide a list of clients for whom the Proposer provides Group Universal Life insurance and note, in particular, public sector employers.
4. Provide the names, titles, addresses and telephone numbers of at least three (3) verifiable state, county and/or municipal clients for whom the Proposer provides Group Universal Life insurance for programs of comparable size as well as three (3) such references for clients that have terminated.

5. Provide the number and names of clients acquired or lost during the last three (3) years. Indicate your national retention percentage for the most recent period.
6. Attach a listing of at least two additional relevant references, including the name of the reference entity, a brief statement describing the relationship between the Proposer and the reference entity, and the name, title and telephone number of a contact person at the reference entity.
7. Attach, for each key staff position, a resume and/or description of the qualifications that will be required which includes their titles, functions, academic credentials and relevant experience.

b. Organizational Capability

Demonstrate the Proposer's organizational (i.e., technical, managerial and financial) capability to provide the work described in the Scope of Services section. Specifically address the following:

1. Describe the Proposer's specialties, unique strengths and/or limitations and any additional relevant organizational information.
2. Describe the Proposer's primary business objective and plans for future growth for the next five (5) years, and state whether or not the Proposer has a limitation on the number of new clients it intends to accept.
3. Indicate which services, if any, the Proposer offers in addition to Group Universal Life Insurance. Indicate the total revenue generated by Group Universal Life insurance and its percentage of the proposing organization's total income.
4. Describe the level of coverage for errors and omissions insurance and any other fiduciary or professional liability insurance the proposing firm carries. Provide the names of vendors providing such insurance.
5. State whether or not any officer or principal of the proposing organization has been involved in any litigation. If so, describe and provide the current status of such litigation.
6. State whether or not the Proposer or any of the Proposer's subsidiaries or affiliated organizations have ever been indicted or otherwise accused of any criminal or civil misconduct since 2011. If so, explain and indicate the outcome of such proceedings and the actions taken by the Proposer to prevent any repetition of such circumstances.
7. Provide a brief history of Proposer's involvement in the Group Universal Life Insurance business, including (a) year of organization; (b) current ownership; (c) affiliated organizations and/or joint ventures; (d) anticipated changes in ownership; and (e) any parent/subsidiary relationships.
8. Attach an organizational chart of the proposing organization.
9. Attach copies of the Proposer's audit report or certified financial statement for the last three (3) years, or a statement as to why the reports or statements are unavailable.
10. Indicate the Proposer's most recent ratings for the Proposer's company by the below organizations. If the Proposer is not rated by one or more of these agencies, explain why not.

Organization	Date	Rating	<u>OR</u>	Explanation Why Not Rated
Standard and Poor's				
Fitch				
A.M. Best				
Moody's				

c. Proposed Approach

Describe in detail how the Proposer will provide the work described in this RFP, and demonstrate how the Proposer's suggested approach will fulfill the Agency's goals and objectives. Specifically address the following:

1. General

- i. Confirm that Proposer's group term participation provisions would conform in all respects with **Attachment H** - Section "C" of the Fund's benefits booklet, entitled "Group Universal Life Insurance." Identify specifically any provisions, in a separate "Proposal Deviations" exhibit, that would deviate from this plan including, but not limited to: (a) scope of coverage; (b) evidence of insurability; (c) coverage amounts and maximums; and (d) increases, decreases, or termination of coverage.

- ii. Confirm that the Proposer agrees to the following contract provisions: (a) the Anticipated Provisions of the Contract as stated in **Section VII**, and (b) Appendix A, the General Provisions Governing Contracts for Consultants, Professional and Technical Services ("Appendix A"). With respect to **Section VII** of this RFP, indicate and state the basis for each objection, if any. **(Note: Failure by the Proposer to raise specific objections to Section VII would be deemed as the Proposer's unconditional acceptance of these provisions.)**

Proposer must confirm that Proposer has read Appendix A and acknowledges and unconditionally agrees to all the terms set forth in the aforementioned documents, without exception.

- iii. Confirm that the Proposer will provide resumes or job descriptions for key staff position qualifications, including those for an account executive and on-site representative.
- iv. Confirm that the Proposer will provide on-site support staff as described **Section III. D.8** of this RFP at no additional charge above the Proposer's proposed premium rates.
- v. Confirm that the proposal complies fully with the specifications provided. If not, please specify the differences and state the reasons for non-compliance.
- vi. Confirm that the proposal is guaranteed to be firm for an effective date of January 1, 2018. Due to the nature of the City's procurement process, confirm that the Proposer would guarantee the proposal until March 31, 2018.
- vii. Confirm that the Proposer will underwrite this plan without payment of commissions.
- viii. Indicate that the Proposer will provide currently insured employees continued coverage on a no-loss, no-gain basis. Indicate that any actively-at-work and hospital confinement restrictions will be waived for current insureds.
- ix. Indicate that the Proposer will review plan documents, conduct the installation process, furnish assistance in all areas of account management and plan administration (including plan design, review of utilization, individual claim problem-solving, and legal issues), and provide enrollment statistics and claims reports, all at no additional cost to the Fund.

- x. Confirm that the Proposer will:
 - (a). Insure all claims incurred on and after the contract effective date.
 - (b). Provide all forms regarding beneficiary claims, and any other relevant forms used in connection with this program.
 - (c). Be responsible for benefit determination, including approvals, denials, and pended claims, based on complete documentation of each claim.
 - (d). Generate benefit checks or EFT within thirty (30) days of the approval of claims. Denials should also be communicated within thirty (30) days.
 - (e). Be responsible for overpayment recovery procedures, including:
 - i. lump-sum refunds
 - ii. installment refunds
 - iii. legal action when unable to obtain refunds.

2. Group Term Coverage Participation

- i. State whether or not Accidental Death & Dismemberment insurance (AD&D) and dependent coverage will be provided. If so, state whether or not term coverage amounts and/or choices for members would differ from present plan and, if so, indicate how they would differ.
- ii. Confirm that the Proposer will continue the current arrangement, whereby each year during the annual enrollment existing GUL plan participants can increase coverage by up to one-times (1x) the participant's salary without EOI, up to the guaranteed amount of the lesser of three-times (3x) the participant's salary or \$500,000. Describe the guaranteed issue provisions and indicate to what extent EOI will be required. State whether or not waiver of premium is available and included in the Proposer's proposal. State whether or not the Proposer will offer an open enrollment period if the Fund should request one, and if so, describe the parameters of the open enrollment.
- iii. Demonstrate that member data, such as annual salary updates, provided by the Fund will be processed within no more than two (2) business days of receipt of data from the Fund. State that the Proposer understands that monthly schedules developed by the Fund and the Proposer indicating submission dates for new enrollments, changes, and termination, must be strictly adhered to in order to meet payroll processing cut-off deadlines, and that the Proposer will consent to these schedules.
- iv. State whether or not any restrictions and/or conditions will be placed on the receipt of benefits in the event of death of a member.
- v. State whether or not the Proposer will guarantee its premium rates for five (5) years and whether or not its rates are firm. Indicate whether the Proposer is prepared to offer a rate cap for each of the two (2) one-year renewals, available at the sole option of the City, equal to the cost of living index (CPI index) at the time of renewal.
- vi. Indicate the Proposer's advance notice period of rate increases.
- vii. Describe and explain the basis of the Proposer's experience rating process for renewal rates. If applicable, describe the Proposer's internal group pooling arrangements for term insurance coverage and explain how this would affect the Proposer's renewal rating.
- viii. If applicable, describe and explain the basis of the Proposer's experience rating process for dividends and refunds. Describe the Proposer's group pooling arrangements for determining dividends and refunds.

- ix. Outline all reserve requirements.
- x. Indicate minimum participation requirements for underwriting the Group Term Life and Cash Accumulation Fund portions of the plan.
- xi. State whether the Proposer is willing to transfer reserves or cash accumulation funds to a subsequent underwriter should the contract be terminated and coverage placed with another carrier, and if so, describe on what basis this will be accomplished.
- xii. Indicate that the Proposer will provide cost estimates for annual budget purposes and for future plan design changes, at no additional cost.

3. Cash Accumulation Fund (CAF) Participation

- i. State whether or not the Proposer's requirements differ from the current CAF provisions of the Fund's current Group Universal Life Insurance program, and if so, describe.
- ii. With regard to interest earnings:
 - (a). Indicate the declared interest rate that will be paid on contributions to the CAF and the period for which this rate will be guaranteed. Indicate the basis for future adjustments in this rate and determine how frequently adjustments will be made. Describe how an adjusted rate will be applied to existing balances.
 - (b). Indicate the permanent guaranteed floor rate on deposits to the CAF.
 - (c). Describe how frequently a member's CAF will be credited with interest earned. State whether or not money must be in the CAF for a specified period before crediting interest and, if so, indicate that period.
 - (d). Indicate the frequency of interest credit compounding and the equivalent annual yield on the declared interest rate quoted.
 - (e). State whether the members will have any other investment options, and if so, describe.
- iii. Describe and explain the basis of the Proposer's method of establishing continuing contribution levels. State whether or not any limitations exist concerning amount and frequency of contributions and, if so, indicate such limitations. State whether or not individual lump sum contributions are allowed and if so, indicate to what extent.
- iv. With regard to loans from the CAF:
 - (a). Indicate the interest rate that will be charged on loans taken from a CAF and state whether or not it is a fixed rate for the period of the loan. State whether or not there is a fixed loan repayment period and, if so, what that period is. State whether or not loans can be converted to withdrawals. State whether or not loans must be repaid.
 - (b). Provide the interest rate that is credited on loaned amounts outstanding.
 - (c). State whether or not there is a transaction charge for arranging a loan and, if so, describe the nature and amount.
- v. With regard to withdrawals taken from the CAF:
 - (a). Indicate how frequently and to what extent withdrawals are allowed.
 - (b). Indicate the priorities of money withdrawn i.e. interest earnings, contributions.
 - (c). Indicate whether there is a transaction charge for withdrawals assessed, and if so, describe the nature and amount.

4. Plan Specifics

i. With regard to portability of the plan:

- (a). Confirm that the policy can be continued with no change in term insurance rates when membership in the Fund decreases because of termination of employment or ineligibility because of position reclassification.*
- (b). Confirm that the policy can be continued into retirement without changes in rates or other conditions.*

*(exception applies when the member has less than one year of participation in the plan)

ii. With regard to policy fees and charges:

- (a). List and describe the nature and basis of policy fees and charges including transaction charges, premium taxes, administrative or other fees which are deducted or charged in addition to the group term insurance premium.

iii. With regard to termination of participation:

- (a). Describe what notice requirements are necessary for (i) individual termination of policy participation and (ii) group termination.
- (b). Provide the penalties that are assessed for termination of policy participation, i.e. loss of interest, transaction fees, other termination charges.
- (c). For CAF, indicate whether or not the policy allows transfer of cash values to another carrier without penalty, and if not, describe penalty.

5. Communications and Administration

i. Describe and demonstrate the effectiveness of the Proposer's approach to each of the following: (a) Proposer's participation in communicating the plan to members as a group; (b) individual counseling as to member contribution and earnings options; plan brochures and booklets; and (c) response to individual member's questions. Provide illustration of projections of death benefits and cash values.

ii. Provide illustrations and indicate frequency of member statements including, but not limited to, coverage, expenses, earnings, loans, withdrawals, and cash values.

iii. Describe and demonstrate the effectiveness of the Proposer's procedures concerning the following:

- (a). Acceptance and processing of enrollment forms and procedures;
- (b). Security and privacy of original records, **in compliance with HIPAA and all other applicable federal and state privacy and security laws and regulations;**
- (c). Changes in beneficiary, coverage, contribution levels, lump sum payments, withdrawals, loans, and terminations;
- (d). Calculation of payroll deduction amounts, including re-spreading premium amounts for missed payroll deductions, acceptance of premium remittance, direct billing for retirees, updates in coverage and premiums due to changes in annual salary and age; and
- (e). Processing of death benefits.

iv. Provide illustrations of reports provided to the Plan sponsor regarding participation, utilization, individual account status, premiums and death claims, and indicate the frequency of these reports

- v. Provide a copy of the customer satisfaction survey that will be used to survey members in this program. Indicate how often the members will be surveyed. Describe and demonstrate the effectiveness of the procedures that will be utilized in performing the survey, including, but not limited to, whether the survey is conducted in writing, via telephone, or other ways. Describe and demonstrate the appropriateness of the procedures that the Proposer will follow if the survey finds member dissatisfaction, and how such dissatisfaction will be remedied. Describe and demonstrate how the Proposer will ensure that at a minimum 95% of respondents will rate the program as good to excellent on the customer satisfaction survey.
- vi. Provide samples of all forms regarding beneficiary claims and any other relevant forms used in connection with this Program.
- vii. State whether or not the Proposer will provide a local and/or a toll-free customer service number.
- viii. Confirm that the telephone system(s) will be operational and available to enrollees 99.5% of the scheduled time from 9:00 a.m. to 5:00 p.m. Eastern Time on business days except for holidays observed by the Proposer.
 - (a) Demonstrate how the Proposer will ensure that the average telephone response time to answer the phone by a customer service representative, measured on a monthly basis, will not exceed thirty (30) seconds.
 - (b) Demonstrate how the Proposer will ensure that the average number of calls, measured on a monthly basis, which the caller disconnects prior to the call being answered (caller abandons due to lack of response) will not exceed three percent (3%).
 - (c) Demonstrate how the Proposer will ensure that not more than three percent (3%) of incoming calls, measured on a monthly basis, will be blocked by a busy signal.

6. Reports/Systems/Data Communication

- i. Provide examples of reports available, e.g. claims reserves reports, death claims reports, etc., indicating frequency of the reports generated, i.e. quarterly/annually, at no additional cost to the Fund.
- ii. Confirm that the Proposer will meet the Fund's systems and data communication requirements as follows:
 - (a). The Proposer, using its own database, will accept a full Salary Update file for premium update purposes from the Fund on an annual basis as illustrated by **Exhibit I**. The file will be sent via encrypted tunnel electronically. The file will not contain header or trailer records. This file will contain an extract of each member record that has been modified since the last file transmission date.
 - (b). The Proposer will advise the Fund of verification of files received, date received, and date applied to the database within two (2) working days of receipt.
 - (c). The Proposer will provide an Eligibility Reconciliation file on a semi-annual basis. The file will contain information regarding coverage election and premium amounts for all members. The file will be used to produce exception reports for the Proposer's correction. **Exhibit II** illustrates the layout of this file.
 - (d). The Proposer would provide a monthly Carrier Billing file in which the Proposer would calculate payroll deductions for active members and their spouses, domestic partners, and dependent children, if any, prior to the Fund's scheduled payroll run. This file would

include deductions for new enrollees, premium changes, and terminations. The layout of this file is illustrated by **Exhibit III**.

- (e). The Fund would provide a monthly Payment file to the Proposer which would include the payroll deductions processed through the Fund's payroll system for the previous period so that adjustments can be made, if any, in the next billing cycle. In addition, this file would include payment discrepancies, if any, based on previous Carrier Billing files submitted by the Proposer. The layout of this file is illustrated by **Exhibit IV**.
- iii. Confirm that such Fund layouts would be acceptable to the Proposer.
- iv. Describe and demonstrate how the Proposer will ensure that accurate management reports will be delivered no later than the agreed upon due date(s).
- v. State whether or not the Proposer can receive and send files via encrypted tunnel electronically.
- vi. Specify the Proposer's primary processing platform to be used (mainframe, minicomputer, LAN), database or file management system), and the location of the data center.
- vii. Describe and demonstrate the effectiveness of the Proposer's security and privacy safeguards. Describe the Proposer's Health Insurance Portability and Accountability Act (HIPAA) security and privacy policy and procedures as they would relate to the administration of the Fund's plan, including the utilization, claims and eligibility reviews of the plan, if applicable. **Confirm that Proposer would be in compliance with HIPAA and all other applicable federal and state privacy and security laws and regulations.**
- viii. Describe and demonstrate the effectiveness of the security features that are built into the system. Provide a copy of the Proposer's systems disaster recovery procedures. State whether or not the Proposer maintains alternate (back-up) site(s) for computer access and data storage, and if yes, describe each. State whether or not a copy of the database and file management system is maintained off-site.
- ix. In addition to the Proposer's disaster recovery procedures, confirm that, should the Proposer's on-site staff be unable to access the City's administrative site due to a disaster, the Proposer would provide space and equipment in the Proposer's office, as well as computers and telephones so that the on-site staff may continue performing the functions described in this RFP, including, but not limited to, responding to member calls and handling database issues regarding this program.

7. Personnel

- i. Indicate where the Account Executive with primary responsibility for servicing this account will be located. List the names, locations, titles and functions of other personnel who will be responsible for this account, and explain the role of each individual.
- ii. State whether or not this individual will be responsible for the production of new business and, if yes, indicate for what percentage of time. Indicate the number and size of such other clients.
- iii. Specify the individual who will be responsible for the day to day servicing of the account.
- iv. Indicate the number of employees who will be accessible to the Fund and have expertise in administering Group Universal Life insurance benefits.
- v. Indicate whether the Proposer's organization has any future plans for staff modification, and describe how the Fund will be notified of staff modification or department restructuring. Indicate how much notice would be given to the Fund.

- vi. The Proposer would be ready to have its enrollment and implementation activities in place as of January 1, 2018, the contract start date, and will assume total operational responsibility for the Plan as of that date, including provision of the following services: (a) operational customer service local or toll-free telephone number staffed by trained Customer Service Representatives; (b) enrollment; (c) claims processing and payment; and (d) procedures to interface with the seven (7) City of New York payroll systems, through the on-site support staff located at the Fund office to assure accurate and timely payroll deduction processing.
 - vii. Describe and demonstrate the effectiveness of the Proposer's policies for controlling workload. State whether or not there is a limit on the number of accounts that a particular employee may handle and if so, indicate that limit.
 - viii. Describe and demonstrate the effectiveness of the Proposer's back-up procedures in the event that key personnel assigned to the Fund's account should leave the firm.
 - ix. Describe and demonstrate the effectiveness of the Proposer's back-up procedures in the event of a disaster. State whether or not a backup of all Proposer's data is located offsite.
 - x. Indicate whether representatives of the Fund will be permitted to visit the Proposer's operation center prior to Proposer selection as well as afterwards, if needed.
- d. Additional Services Capabilities
- (i) Do you offer a hybrid life and long-term care insurance product? If so, please describe, including premium structure; please indicate whether the product is offered on a group or individual basis.
 - (ii) Do you offer any standalone products or riders that support long-term care insurance needs for individuals? If so, please describe, including premium structure; please indicate whether the product is offered on a group or individual basis.

3. Price Proposal

Proposers are encouraged to propose innovative payment structures. The Agency reserves the right to select any payment structure that the City deems to be in the best interest of the Fund's members. For the purposes of comparison, Proposers should submit a Price Proposal that meets the standards of **a.** and **b.** below.

a. Proposed Pricing

The Price Proposal should include the following for providing the work described in **Section III** of this RFP:

- The proposed price per deliverable and total offering price in the format prescribed in the Proposed Administrative Fee Schedule is attached as **Attachment 3**.

b. Performance Guarantees

1. Performance Guarantees

- Confirm that the Proposer will contractually agree to each of the Performance Guarantees stated below, and will guarantee that all performance guarantees required by this RFP will be met or exceeded. Provide any additional guarantees that the Proposer would be willing to offer, if any.
- Confirm that the Proposer is prepared to incur liquidated damages for failure to perform in accordance with the plan specifications and terms of this RFP. Propose liquidated damages for failure to meet each guarantee stated below.
- If different, provide the Proposer's standard Performance Guarantees, including liquidated damages for non-compliance. (The Fund reserves the right to negotiate the final performance

guarantees which may be different than those standardly offered by the Proposer. Performance audits will be based upon the performance guarantees set forth in the contractual agreement resulting from this RFP.)

a. Implementation and Start Up Guarantee

The successful Proposer must, at a minimum, guarantee that all plan implementation activities will begin by October 1, 2017 and be completed no later than December 1, 2017, so that effective January 1, 2018 the Proposer can assume total operational responsibility for this Plan. For the purpose of this guarantee, the carrier must, by December 1, 2017, have in place its: (a) operational customer service local or toll-free telephone number staffed by trained Customer Service Representatives; (b) enrollment procedures; (c) procedures to interface with the seven (7) City of New York payroll systems, through the on-site support staff located at the Fund office to assure accurate and timely payroll deduction processing; (d) a claims payment system; and, (e) claims processing staff.

b. Enrollment Maintenance Guarantee

The Proposer must, at a minimum, guarantee that annual salary update data provided by the Fund is processed within two (2) business days of receipt of data from the Fund. Schedules developed by the Fund for the Proposer indicating submission dates for payroll deduction amounts must be strictly adhered to in order to meet payroll processing cut-off deadlines.

c. Customer Service Guarantee

The Proposer must guarantee all of the following four (4) minimal levels of service on the local or toll-free customer service number:

- i. Customer Service Availability - The Proposer must guarantee that the telephone system will be operational and available to enrollees 99.5% of the scheduled time from 9:00 a.m. to 5:00 p.m. Eastern Time on business days except for holidays observed by the Proposer.
- ii. Customer Service Telephone Response Rate - The Proposer must guarantee that the average telephone response time to answer the phone by a customer service representative, measured on a monthly basis, will not exceed 30 seconds.
- iii. Telephone Blockage and Abandonment Rate - The Proposer must guarantee that the average number of calls, measured on a monthly basis, which the caller disconnects prior to the call being answered (caller abandons due to lack of response), or are blocked by a busy signal, will not exceed three percent (3%).

d. Management Reports Guarantee

The Proposer must guarantee that accurate management reports will be delivered no later than the agreed upon due date(s).

e. Customer Satisfaction Survey

The Proposer must guarantee that at a minimum 95% of respondents will rate the program as good to excellent on a customer satisfaction survey provided to members by the Proposer.

c. Acknowledgment of Addenda

The Acknowledgment of Addenda form (**Attachment 2**) serves as the proposer's acknowledgment of the receipt of addenda to this RFP that may have been issued by the Agency prior to the Proposal Due Date and Time, as set forth in **Section I** of this RFP. The Proposer should complete this form as instructed.

B. Proposal Package Contents (“Checklist”)

The Proposal Package must contain the following materials. Proposers should utilize this section as a “checklist” to ensure completion prior to submitting their proposal to the Agency.

1. A sealed inner envelope labeled “Program Proposal,” containing one original set of the documents listed below in the following order:
 - (a). Proposal Cover Letter Form (**Attachment 1**) – **Minimum Qualification Requirements:**
 - Proposers must indicate whether they are licensed or authorized to conduct business in New York State by providing a copy of their license. Any Proposer who does not comply with this minimum requirement will be deemed non-responsive.
 - (b). Technical Proposal
 - (c). Narrative (including Proposed Approach)
 - (d). List of clients to whom the Proposer currently provides Group Universal Life Insurance benefits
 - (e). Clients acquired or lost over the past three years
 - (f). Contact information for three references and two additional references
 - (g). Resumes and/or description of qualifications for key staff positions
 - (h). Company organizational chart
 - (i). Most recent Audit Report or Certified Financial Statement or statement as to why no report/statement is available
 - (j). A license or certificate to conduct business, or a registration or other required documentation for doing business in New York State that may apply to the Proposer. (**Note: This is a minimum qualification requirement. Failure to address this minimum qualification requirement will result in a non-responsive determination.**)
 - (k). Disaster recovery procedures
 - (l). Acknowledgment of Addenda Form (**Attachment 2**)
 - (m). Sample employee satisfaction survey
 - (n). Sample forms and reports
 - (o). Performance guarantees
2. A separate sealed inner envelope labeled “Price Proposal” containing one original set of the Proposed Price Schedule (**Attachment 3**). Please use the price proposal sheets attached.
3. A separate sealed inner envelope labeled “Flash Drive” should contain a Flash Drive with all of the proposal documents, comprised of the original technical proposal and the original price proposal, as separate PDFs, cover letter, and any other required or related documents. Please note that the flash drive will be retained by MBF and not returned to the Proposer.
4. A separate sealed inner envelope labeled “Doing Business Data Form” containing an original, completed Data Form (this Form must be downloaded from the OLR Web site at: <http://www1.nyc.gov/site/olr/about/about-rfp.page> or obtained from the Fund’s administrative office at 22 Cortlandt St., 28th floor, New York, NY 10007).
5. A sealed outer envelope, with the enclosed four sealed inner envelopes mentioned above. The sealed outer envelope should have two labels containing:
 - The Proposer’s name and address, the Title and PIN of this RFP and the name and telephone number of the Proposer’s Contact Person.
 - The name, title and address of the Authorized Agency Contact Person.

SECTION V - PROPOSAL EVALUATION AND CONTRACT AWARD PROCEDURES

A. EVALUATION PROCEDURES

All proposals accepted by the Agency will be reviewed to determine whether they are responsive or non-responsive to the requirements of this RFP. Proposals that are determined by the Agency to be non-responsive will be rejected. The Evaluation Committee will evaluate and rate all remaining proposals based on the Evaluation Criteria prescribed below. The proposals will be ranked in order of highest to lowest technical score, and the Agency will establish a short-list through a natural break in scores. The Agency reserves the right to conduct interviews, site visits and/or to request that Proposers make presentations and/or demonstrations as the Agency deems applicable and appropriate, and the Agency reserves the right to first request clarifications and/or technical Best and Final Offers (BAFOs), and to do technical rescoring(s) before establishing the final short list and opening price proposals. In considering price among technically viable proposals, the Agency will review the price proposals of the technically viable firms (i.e. those proposals above the natural break in scores), and may request a pricing BAFO. Although discussions may be conducted with Proposers submitting acceptable proposals, the Agency reserves the right to award contracts on the basis of initial proposals received, without discussions; therefore, the Proposer's initial proposal should contain its best technical and price terms.

B. EVALUATION CRITERIA

Demonstrated Quantity & Quality of Successful Relative Experience	(20 points)
Demonstrated Level of Organizational Capability	(30 points)
Quality of Proposed Approach	(50 points)

C. BASIS FOR CONTRACT AWARD

A contract will be awarded to the responsible Proposer(s) whose proposal(s) are determined to be the most advantageous to the City, taking into consideration the price and such other factors or criteria which are set forth in this RFP.

Contract award shall be subject to the timely completion of contract negotiations between the Agency and the selected Proposer.

SECTION VI - GENERAL INFORMATION FOR PROPOSERS

A. Complaints. The New York City Comptroller is charged with the audit of contracts in New York City. Any Proposer who believes that there has been unfairness, favoritism or impropriety in the proposal process should inform the Comptroller, Office of Contract Administration, 1 Centre Street, Room 517, New York, NY 10007. In addition, the New York City Department of Investigation should be informed of such complaints at its Investigations Division, 80 Maiden Lane, New York, NY 10038; the telephone number is (212) 825-5900.

B. Applicable Laws. This Request for Proposals and the resulting contract award(s), if any, unless otherwise stated, are subject to all applicable provisions of New York State Law, the New York City Administrative Code, New York City Charter and New York City Procurement Policy Board (PPB) Rules. To access the most recent version of the PPB Rules, go to the City's Internet site (<http://www.nyc.gov/html/mocs/ppb/html/rules/rules.shtml>), where the Proposer can view the PPB Rules and all recent revisions. In the event of a direct or indirect conflict between PPB rules and any PPB citation herein, the most recent PPB rules shall govern.

C. General Contract Provisions. Appendix A, the General Provisions Governing Contracts for Consultants, Professional and Technical Services, will be attached to any contract arising from this solicitation. The version included with this RFP is the current version of the General Provisions Governing Contracts for Consultants, Professional and Technical Services including E.O. 50. However, the New York City Law Department may revise the General Provisions Governing Contracts for Consultants, Professional and Technical Services from time to time. Any contract entered into as a result of this solicitation will include the most recent version of the General Provisions Governing Contracts for Consultants, Professional and Technical Services, which may differ from the version enclosed with this RFP.

D. Contract Award. Contract award is subject to each of the following applicable conditions and any others that may apply: Appendix A, New York City Fair Share Criteria; New York City MacBride Principles Law; submission by the Proposer of the requisite New York City Department of Business Services/Division of Labor Services Employment Report and certification by that office; submission by the Proposer of the requisite VENDEX Questionnaires/Affidavits of No Change and review of the information contained therein by the New York City Department of Investigation; all other required oversight approvals; applicable provisions of federal, state and local laws and executive orders requiring affirmative action and equal employment opportunity; and Section 6-108.1 of the New York City Administrative Code relating to the Local Based Enterprises program and its implementation rules.

E. Proposer Appeal Rights. Pursuant to New York City's PPB Rules, Proposers have the right to appeal Agency non-responsiveness determinations and Agency non-responsibility determinations and to protest an Agency's determination regarding the solicitation or award of a contract.

F. Multi-Year Contracts. Multi-year contracts are subject to modification or cancellation if adequate funds are not appropriated to the Agency to support continuation of performance in any City fiscal year succeeding the first fiscal year and/or if the Contractor's performance is not satisfactory. The Agency will notify the Contractor as soon as is practicable that the funds are, or are not, available for the continuation of the multi-year contract for each succeeding City fiscal year. In the event of cancellation, the Contractor will be reimbursed for those costs, if any, which are so provided for in the contract.

G. Prompt Payment Policy. Pursuant to the New York City's PPB Rules, it is the policy of the City to process contract payments efficiently and expeditiously.

H. Prices Irrevocable. Prices proposed by the Proposer shall be irrevocable until contract award, unless the proposal is withdrawn. Proposals may only be withdrawn by submitting a written request to the Agency prior to contract award but after the expiration of 90 days after the opening of proposals. This shall not limit the discretion of the Agency to request Proposers to revise proposed prices through the submission of best and final offers and/or the conduct of negotiations.

I. Confidential, Proprietary Information or Trade Secrets. Proposers should give specific attention to the identification of those portions of their proposals that they deem to be confidential, proprietary information or trade secrets and provide any justification of why such materials, upon request, should not be disclosed by the City. Such information must be easily separable from the non-confidential sections of the proposal. All information not so identified may be disclosed by the City.

J. RFP Postponement/Cancellation. The Agency reserves the right to postpone or cancel this RFP, in whole or in part, and to reject all proposals.

K. Proposer Costs. Proposers will not be reimbursed for any costs incurred to prepare proposals.

L. Vendex Fees. Pursuant to PPB Rule 2-08(f)(2), the Contractor will be charged a fee for the administration of the VENDEX system, including the Vendor Name Check process, if a Vendor Name Check review is required to be conducted by the Department of Investigation. The Contractor shall also be required to pay the applicable required fees for any of its subcontractors for which Vendor Name Check reviews are required. The fee(s) will be deducted from payments made to the Contractor under the contract. For contracts with an estimated value of less than or equal to \$1,000,000, the fee will be \$175. For contracts with an estimated value of greater than \$1,000,000, the fee will be \$350. The estimated value for each contract resulting from this RFP is estimated to be above \$1,000,000.

L. Charter Section 312(a) Certification. The Agency has determined that the contract(s) to be awarded through this Request for Proposals will not directly result in the displacement of any New York City employee.

Agency Chief Contracting Officer

Date

Message from the New York City Vendor Enrollment Center
Get on mailing lists for New York City contract opportunities!
Submit a NYC-FMS Vendor Application - Call 212/857-1680

SECTION VII - ANTICIPATED PROVISIONS OF THE CONTRACT

The Agency anticipates that the contract awarded from this RFP will be comprised of the following. If the proposer objects to any of the following provisions, the Proposer should specifically set forth its objection to the provision. Failure by the Proposer to raise specific objection to the following provisions shall be deemed as Proposer's unconditional acceptance of these provisions specifically as set forth herein.

The contract awarded will include Appendix A, the General Provisions Governing Contracts for Consultants, Professional and Technical Services ("Appendix A"). Vendor must confirm that Vendor has read Appendix A, and acknowledges and unconditionally agrees to all the terms set forth in the aforementioned documents, without exception.

1. The terms and conditions of the Contract shall include the Appendix A, annexed hereto and made a part of this Agreement as if fully set forth herein. In addition, the Vendor and the City agree that this Agreement shall be subject to the Request for Proposals to Provide Group Universal Life Insurance Benefits dated XX 2016 ("RFP") and Vendor's subsequent proposal ("Proposal"), each of which is made a part of this Agreement as if fully set forth herein. In the event of any express or implied conflict between the provisions of this Agreement, the following order of priority shall govern: (1) first, the body of this Agreement shall govern; (2) thereafter, Appendix A shall govern; (3) thereafter, the RFP shall govern unless such provision is more favorable to the Fund and is not prohibited by Appendix A; (4) thereafter the New York City Procurement Policy Board ("PPB") Rules shall govern, unless such provision is more favorable to the Fund and is not prohibited by Appendix A; and (5) thereafter, the Proposal shall govern, unless such other provision is more favorable to the Fund and is not prohibited by Appendix A.

2. Authorization to do business in the State of New York: Vendor represents and warrants that it is duly licensed to or qualified to conduct business of the nature contemplated by the Contract, and is in good standing in the State of New York and City of New York and has the power and authority to enter into this Contract and to carry out the transactions contemplated hereby. Vendor further represents and warrants: (i) that it is not in arrears to the City of New York or the State of New York upon any debt or contract; (ii) that Vendor has not been declared not responsible, or disqualified, by any agency of the City of New York or State of New York and (iii) that there are no proceedings pending relating to the responsibility or qualification of the Vendor to receive public contracts.

3. Indemnification: The Vendor shall be liable for and shall hold harmless and indemnify the Agency and the City, the Fund, and the fiduciaries, trustees, administrators, agents and employees of each of them for all losses, liabilities, settlements and related expenses, including reasonable attorneys' fees and investigation, collection and litigation costs, which arises out of or are based upon any fraud, breach of this Agreement, reckless or negligent act or omission, or willful or intentional misconduct of Vendor or any of its fiduciaries, trustees, administrators, agents or employees, except to the extent that such loss, liability, expense, or cost is caused by or arises out of any fraud breach of this Agreement, reckless or negligent act or omission or willful or intentional misconduct of the City, the Fund, the Agency or the fiduciaries, trustees, administrators, agents or employees of any of them. The Fund will promptly provide Vendor with notice of the commencement by any third party of any action regarding a claim for which it will seek indemnification. Vendor shall be entitled to participate in any such action, and if so wishes, jointly assume the defense thereof.

Please note that the Fund does not intend for the above indemnification clause to be reciprocal. No Contractor will be entitled to include a provision in the contract providing indemnification rights to the Contractor.

4. Termination of Agreement:

4.1. If the Vendor fails to fulfill any of the terms of this Agreement in a timely and satisfactory manner upon ten days written notice, or immediately upon the happening of any of the following events: (i) Vendor has made any misrepresentation in or with respect, to or has breached any provision of the Agreement; (ii) the filing by or against the Vendor of request or petition for liquidation, reorganization, arrangement, adjustment of debts, adjudication as a bankrupt, relief as a debtor or other relief under the bankruptcy, insolvency or similar laws of the United States or any state or territory thereof or any foreign jurisdiction, now or hereafter in effect; (iii) the making of any general assignment by the Vendor for the benefit of creditors; (iv) the appointment of a receiver or trustee for Vendor or for any asset of Vendor including without limitation, the appointment or taking possession by a "custodian," as defined in the Federal Bankruptcy Code or (v) the Vendor engages in negligence, recklessness, fraud or other willful or intentional misconduct in its performance of any service required herein, the Fund shall have the right to terminate the contract and award a new

contract to another vendor and the Vendor shall be responsible for all damages arising from its breach as well as all costs incurred in re-letting the contract including actual attorneys' fee and expenses.

4.2. Notwithstanding any other termination provision of this Agreement, the Fund may terminate this Agreement upon providing ten (10) days written notice, if it is determined by the Fund that termination of the contract is in the best interest of the Fund.

4.3 In addition to any other right of termination available under this Agreement, in the event that the Funds are not made available to the Fund for the continuation of the services described in the Agreement in any of the years succeeding the first, the Agreement shall terminate automatically. Such termination, however, shall not affect the Fund's rights under any other termination clause. Upon expiration and/or termination of the Agreement, Vendor shall assist the Fund and any successor provider with the transition to the new vendor.

Please note that the Fund does not intend for the above termination clause to be reciprocal. No Contractor will be entitled to include a provision in the contract providing termination rights to the Contractor.

5. No Penalties upon Expiration of Contract: Vendor shall impose no penalties, whatsoever for the transfer of responsibilities upon expiration or termination of the Contract.

6. Assignment: Rights or obligations under this Agreement may not be assigned or delegated by Vender without the prior written consent of the City. Any permissible assignment or delegation under this Agreement shall accrue to the benefit of and shall be enforceable against successors and assigns.

7. Waiver: No waiver of any of the provisions of this Agreement shall be binding upon any party hereto unless in writing and signed by said party or its duly authorized representative. No failure on the part of the Fund to exercise any right or remedy hereunder, whether before or after the happening of a default, shall constitute a waiver of such default, any future default or any other default.

8. Entire Agreement: The Agreement represents the entire understanding of the parties with respect to the subject matter hereof. No representations, oral or otherwise, express or implied, with respect to the subject matter hereof have been made by any party, which are not set forth expressly in this Agreement. This Agreement may not be amended, modified or supplemented at any time whatsoever unless such amendment, modification of supplementation is reduced to writing executed by all parties hereto.

9. New York Law: The validity, performance, construction and effect of this Agreement shall be governed by the laws of the State of New York applicable to contracts entered into to be fully performed entirely therein.

10. Venue And Waiver Of Jury Trial: The Vendor hereby submits to the jurisdiction of the Supreme Court of the State of New York and agrees with the Fund that personal jurisdiction over this Agreement shall rest with the Supreme Court of the State of New York for purposes of any action related to this Agreement or the enforcement of same. The Vendor hereby waives personal service by personal delivery and agrees that service of process may be made by post- paid certified mail directed to Vendor at Vendor's address set forth at the address recited in the preamble hereto or at such address as may be designated in writing by Vendor to be effective with the same effect as though personally served.

The parties waive their right to a jury trial and agree that any action or proceeding commenced by either party arising out of this Agreement shall be tried before a judge and not a jury. The parties acknowledge that the foregoing waiver is informed and voluntary.

11. Severability: In the event that any provision of this Agreement is illegal, invalid against public policy or unenforceable for any reason, the remainder of this Agreement shall nonetheless remain in full force and effect.

12. Receipt of Data: All records and supporting documentation are the property of, and will be made available to the Fund as needed. The Fund shall have the right to determine which records or facts are needed and the Vendor agrees to provide this information within twenty (20) days after the Fund's request of such information.

13. Future Plan Transition Rights: In the event that the Fund subsequently transfers administration responsibilities to another vendor, the Vendor must agree to supply the successor vendor with all records, spreadsheets, claims and other documents deemed necessary by the Fund. The Vendor must agree to make every effort to cooperate with the successor vendor and the Fund in order to facilitate the transition.

14. Work Products: The contents, but not the format, of all reports, statements and other materials or data produced pursuant to the Agreement shall be the sole property of the Fund. The Fund shall have the sole right to copyright the contents of such items, with the exception of those items marked “confidential” in the Vendor’s proposal. If the Vendor fails to fulfill any of the terms of the Agreement in a timely fashion and upon the due date of any assignment or upon the termination of this Agreement, Vendor agrees to maintain the records necessary to produce all reports referenced herein and agrees that all records shall be the property of the Fund and that the Fund shall be provided with a copy of such records in hard copy within ten (10) days after the effective date of the expiration or termination at no cost or fee to the Fund. The Vendor shall also provide the Fund with all related computer tapes, discs, and programs at no cost to the Fund.

15. Dispute Resolution:

15.1 Except as provided in 15.1(a) and 15.1(b) below, all disputes between the City and the vendor that arise under, or by virtue of, this contract shall be finally resolved in accordance with the provisions of this section and Section 4-09 of the Rules of the Procurement Policy Board (“PPB Rules”). This procedure shall be the exclusive means of resolving any such disputes.

(a) This section shall not apply to disputes concerning matters dealt with in other sections of the PPB Rules or to disputes involving patents, copyrights, trademarks, or trade secrets (as interpreted by the courts of New York State) relating to proprietary rights in computer software.

(b) For construction and construction-related services this section shall apply only to disputes about the scope of work delineated by the contract, the interpretation of contract documents, the amount to be paid for extra work or disputed work performed in connection with the contract, the conformity of the vendor’s work to the contract, and the acceptability and quality of the vendor’s work; such disputes arise when the Engineer, Resident Engineer, Engineering Audit Officer, or other designee of the Commissioner makes a determination with which the vendor disagrees.

15.2 All determinations required by this section shall be clearly stated, with a reasoned explanation for the determination based on the information and evidence presented to the party making the determination. Failure to make such determination within the time required by this section shall be deemed a non-determination without prejudice that will allow application to the next level.

15.3 During such time as any dispute is being presented, heard, and considered pursuant to this section, the contract terms shall remain in full force and effect and the vendor shall continue to perform work in accordance with the contract and as directed by the Agency Chief Contracting Officer (“ACCO”) or Engineer, Resident Engineer, Engineering Audit Officer, or other designee of the Commissioner. Failure of the vendor to continue the work as directed shall constitute a waiver by the vendor of any and all claims being presented pursuant to this section and a material breach of contract.

15.4 Presentation of Dispute to Agency Head.

a. **Notice of Dispute and Agency Response.** The vendor shall present its dispute in writing (“Notice of Dispute”) to the Agency Head within the time specified herein, or, if no time is specified, within thirty (30) days of receiving written notice of the determination or action that is the subject of the dispute. This notice requirement shall not be read to replace any other notice requirements contained in the contract. The Notice of Dispute shall include all the facts, evidence, documents, or other basis upon which the vendor relies in support of its position, as well as a detailed computation demonstrating how any amount of money claimed by the vendor in the dispute was arrived at. Within thirty (30) days after receipt of the complete Notice of Dispute, the ACCO or, in the case of construction or construction-related services, the Engineer, Resident Engineer, Engineering Audit Officer, or other designee of the Commissioner, shall submit to the Agency Head all materials he or she deems pertinent to the dispute. Following initial submissions to the Agency Head, either party may demand of the other the production of any document or other material the demanding party believes may be relevant to the dispute. The requested party shall produce all relevant

materials that are not otherwise protected by a legal privilege recognized by the courts of New York State. Any question of relevancy shall be determined by the Agency Head whose decision shall be final. Willful failure of the vendor to produce any requested material whose relevancy the vendor has not disputed, or whose relevancy has been affirmatively determined, shall constitute a waiver by the vendor of its claim.

b. Agency Head Inquiry. The Agency Head shall examine the material and may, in his or her discretion, convene an informal conference with the vendor and the ACCO and, in the case of construction or construction-related services, the Engineer, Resident Engineer, Engineering Audit Officer, or other designee of the Commissioner, to resolve the issue by mutual consent prior to reaching a determination. The Agency Head may seek such technical or other expertise as he or she shall deem appropriate, including the use of neutral mediators, and require any such additional material from either or both parties as he or she deems fit. The Agency Head's ability to render, and the effect of, a decision hereunder shall not be impaired by any negotiations in connection with the dispute presented, whether or not the Agency Head participated therein. The Agency Head may or, at the request of any party to the dispute, shall compel the participation of any other vendor with a contract related to the work of this contract and that vendor shall be bound by the decision of the Agency Head. Any vendor thus brought into the dispute resolution proceeding shall have the same rights and obligations under this section as the vendor initiating the dispute.

c. Agency Head Determination. Within thirty (30) days after the receipt of all materials and information, or such longer time as may be agreed to by the parties, the Agency Head shall make his or her determination and shall deliver or send a copy of such determination to the vendor and ACCO and, in the case of construction or construction-related services, the Engineer, Resident Engineer, Engineering Audit Officer, or other designee of the Commissioner, together with a statement concerning how the decision may be appealed.

d. Finality of Agency Head Decision. The Agency Head's decision shall be final and binding on all parties, unless presented to the Contract Dispute Resolution Board ("CDRB") pursuant to this section. The City may not take a petition to the CDRB. However, should the vendor take such a petition, the City may seek, and the CDRB may render, a determination less favorable to the vendor and more favorable to the City than the decision of the Agency Head.

15.5 Presentation of Dispute to the Comptroller.

a. Before any dispute may be brought by the vendor to the CDRB, the vendor must first present its claim to the Comptroller for his or her review, investigation, and possible adjustment.

b. Time, Form, and Content of Notice. Within thirty (30) days of receipt of a decision by the Agency Head, the vendor shall submit to the Comptroller and to the Agency Head a Notice of Claim regarding its dispute with the agency. The Notice of Claim shall consist of (i) a brief statement of the substance of the dispute, the amount of money, if any, claimed and the reason(s) the vendor contends the dispute was wrongly decided by the Agency Head; (ii) a copy of the decision of the Agency Head, and (iii) a copy of all materials submitted by the vendor to the agency, including the Notice of Dispute. The vendor may not present to the Comptroller any material not presented to the Agency Head, except at the request of the Comptroller.

c. Agency Response. Within thirty (30) days of receipt of the Notice of Claim, the agency shall make available to the Comptroller a copy of all material submitted by the agency to the Agency Head in connection with the dispute. The agency may not present to the Comptroller any material not presented to the Agency Head, except at the request of the Comptroller.

d. Comptroller Investigation. The Comptroller may investigate the claim in dispute and, in the course of such investigation, may exercise all powers provided in sections 7-201 and 7-203 of the New York City Administrative Code. In addition, the Comptroller may demand of either party, and such party shall provide, whatever additional material the Comptroller deems pertinent to the claim, including original business records of the vendor. Willful failure of the vendor to produce within fifteen (15) days any material requested by the Comptroller shall constitute a waiver by the vendor of its claim. The Comptroller may also schedule an informal conference to be attended by the supplier, agency representatives, and any other personnel desired by the Comptroller.

e. Opportunity of Comptroller to Compromise or Adjust Claim. The Comptroller shall have forty-five (45) days from his or her receipt of all materials referred to in 15.5(c) to investigate the disputed claim. The period for investigation and compromise may be further extended by agreement between the vendor and the Comptroller, to a maximum of ninety (90) days from the Comptroller's receipt of all the materials. The vendor may not present its petition to the CDRB until the period for investigation and compromise delineated in this paragraph has expired. In compromising or adjusting any claim hereunder, the Comptroller may not revise or disregard the terms of the contract between the parties.

15.6 Contract Dispute Resolution Board.

There shall be a Contract Dispute Resolution Board composed of:

- a. the chief administrative law judge of the Office of Administrative Trials and Hearings ("OATH") or his/her designated OATH administrative law judge, who shall act as chairperson, and may adopt operational procedures and issue such orders consistent with this section as may be necessary in the execution of the CDRB's functions, including, but not limited to, granting extensions of time to present or respond to submissions;
- b. the City Chief Procurement Officer ("CCPO") or his/her designee, or in the case of disputes involving construction, the Director of the Office of Construction or his/her designee; any designee shall have the requisite background to consider and resolve the merits of the dispute and shall not have participated personally and substantially in the particular matter that is the subject of the dispute or report to anyone who so participated, and
- c. a person with appropriate expertise who is not an employee of the City. This person shall be selected by the presiding administrative law judge from a pre-qualified panel of individuals, established and administered by OATH, with appropriate background to act as decision-makers in a dispute. Such individuals may not have a contract or dispute with the City or be an officer or employee of any company or organization that does, or regularly represent persons, companies, or organizations having disputes with the City.

15.7 Petition to CDRB.

In the event the claim has not been settled or adjusted by the Comptroller within the period provided in this section, the vendor, within thirty (30) days thereafter, may petition the CDRB to review the Agency Head determination.

- a. Form and Content of Petition by Vendor. The vendor shall present its dispute to the CDRB in the form of a Petition, which shall include (i) a brief statement of the substance of the dispute, the amount of money, if any, claimed, and the reason(s) the vendor contends that the dispute was wrongly decided by the Agency Head; (ii) a copy of the decision of the Agency Head; (iii) copies of all materials submitted by the vendor to the agency; (iv) a copy of the decision of the Comptroller, if any, and (v) copies of all correspondence with, and material submitted by the vendor to, the Comptroller's Office. The vendor shall concurrently submit four complete sets of the Petition: one to the Corporation Counsel (Attn: Commercial and Real Estate Litigation Division), and three to the CDRB at OATH's offices, with proof of service on the Corporation Counsel. In addition, the vendor shall submit a copy of the statement of the substance of the dispute, cited in (i) above, to both the Agency Head and the Comptroller.
- b. Agency Response. Within thirty (30) days of receipt of the Petition by the Corporation Counsel, the agency shall respond to the statement of the vendor and make available to the CDRB all material it submitted to the Agency Head and Comptroller. Three complete copies of the agency response shall be submitted to the CDRB at OATH's offices and one to the vendor. Extensions of time for submittal of the agency response shall be given as necessary upon a showing of good cause or, upon the consent of the parties, for an initial period of up to thirty (30) days.
- c. Further Proceedings. The Board shall permit the vendor to present its case by submission of memoranda, briefs, and oral argument. The Board shall also permit the agency to present its case in response to the vendor by submission of memoranda, briefs, and oral argument. If requested by the Corporation Counsel, the Comptroller shall provide reasonable assistance in the preparation of the agency's case. Neither the vendor nor the agency may support its case with any documentation or other material that was not considered by the Comptroller, unless requested by the CDRB. The CDRB, in its discretion, may seek such technical or other expert advice as it shall deem appropriate and may

seek, on its own or upon application of a party, any such additional material from any party as it deems fit. The CDRB, in its discretion, may combine more than one dispute between the parties for concurrent resolution.

d. CDRB Determination. Within forty-five (45) days of the conclusion of all submissions and oral arguments, the CDRB shall render a decision resolving the dispute. In an unusually complex case, the CDRB may render its decision in a longer period of time, not to exceed ninety (90) days, and shall so advise the parties at the commencement of this period. The CDRB's decision must be consistent with the terms of the contract. Decisions of the CDRB shall only resolve matters before the CDRB and shall not have precedential effect with respect to matters not before the CDRB.

e. Notification of CDRB Decision. The CDRB shall send a copy of its decision to the vendor, the ACCO, the Corporation Counsel, the Comptroller, the CCPO, the Office of Construction, the PPB, and, in the case of construction or construction-related services, the Engineer, Resident Engineer, Engineering Audit Officer, or other designee of the Commissioner. A decision in favor of the vendor shall be subject to the prompt payment provisions of the PPB Rules. The Required Payment Date shall be thirty (30) days after the date the parties are formally notified of the CDRB's decision.

f. Finality of CDRB Decision. The CDRB's decision shall be final and binding on all parties. Any party may seek review of the CDRB's decision solely in the form of a challenge, filed within four months of the date of the CDRB's decision, in a court of competent jurisdiction of the State of New York, County of New York pursuant to Article 78 of the Civil Practice Law and Rules. Such review by the court shall be limited to the question of whether or not the CDRB's decision was made in violation of lawful procedure, was affected by an error of law, or was arbitrary and capricious or an abuse of discretion. No evidence or information shall be introduced or relied upon in such proceeding that was not presented to the CDRB in accordance with Section 4-09 of the PPB Rules.

Any termination, cancellation, or alleged breach of the contract prior to or during the pendency of any proceedings pursuant to this section shall not affect or impair the ability of the Agency Head or CDRB to make a binding and final decision pursuant to this section.

SECTION VIII - APPENDIX A - THE GENERAL PROVISIONS GOVERNING CONTRACTS FOR
CONSULTANTS, PROFESSIONAL AND TECHNICAL SERVICE

This document is available for download on following Web site, once you complete the registration for the RFP:
<http://www1.nyc.gov/site/olr/about/about-rfp.page>

ATTACHMENT 1

**PROPOSAL COVER LETTER
REQUEST FOR PROPOSALS TO PROVIDE
GROUP UNIVERSAL LIFE INSURANCE (GUL) BENEFITS**

PIN: 214150000431

Proposer:

Name: _____

Address: _____

Tax Identification #: _____

Proposer's Contact Person:

Name: _____

Title: _____

Telephone #: _____

Compliance with Minimum Qualification:

Authorized to do business in New York State (Documentation attached): YES NO

Format of Proposal:

Is the response printed on both sides, on recycled paper containing the minimum percentage of recovered fiber content as requested by the City in the instructions to this solicitation?

YES NO

Proposer's Authorized Representative:

Name: _____

Title: _____

Signature: _____

Date: _____

ATTACHMENT 2
ACKNOWLEDGMENT OF ADDENDA

RFP TITLE: **REQUEST FOR PROPOSALS TO PROVIDE GROUP UNIVERSAL LIFE (GUL) INSURANCE BENEFITS, PIN 214150000431**

DIRECTIONS: COMPLETE PART I OR II, WHICHEVER IS APPLICABLE.

PART I:

LISTED BELOW ARE THE DATES OF ISSUE FOR EACH ADDENDUM RECEIVED/REVIEWED IN CONNECTION WITH THIS RFP:

ADDENDUM # 1, DATED_____, 201_

ADDENDUM # 2, DATED_____, 201_

ADDENDUM # 3, DATED_____, 201_

ADDENDUM # 4, DATED_____, 201_

ADDENDUM # 5, DATED_____, 201_

ADDENDUM # 6, DATED_____, 201_

ADDENDUM # 7, DATED_____, 201_

ADDENDUM # 8, DATED_____, 201_

ADDENDUM # 9, DATED_____, 201_

ADDENDUM #10, DATED_____, 201_

PART II _____NO ADDENDUM WAS RECEIVED/REVIEWED IN CONNECTION WITH THIS RFP.

PROPOSER (NAME) _____

PROPOSER'S AUTHORIZED REPRESENTATIVE

NAME: _____

TITLE: _____

SIGNATURE: _____

DATE: _____

ATTACHMENT 3

PROPOSED PREMIUM RATE SCHEDULE

Proposers must use the following format when submitting their Premium Rate Schedules:

MONTHLY COST OF INSURANCE

(per \$1,000 of coverage)

Age	Member Smoker Rate	Member Non-Smoker Rate	Spouse/Domestic Partner Rate	Monthly Maximum CAF Contributions
Under 30				
30-34				
35-39				
40-44				
45-49				
50-54				
55-59				
60-64				
65-69				
70-74				
75-79				
80-84				
85-89				
90-94				
95-99				

PREMIUMS FOR DEPENDENT CHILDREN: \$_____ per month per \$_____ coverage.

Exhibit I
NYC MANAGEMENT BENEFITS FUND
MEMBER ELIGIBILITY FILE FORMAT

GROUP LIFE INSURANCE Eligibility / Salary Update File Layout

Field Name	Type	Length	Required	Description
RECTYPE	Char	1		
REASON	Char	20		
EMP_NUMB	Char	14	Yes	Employee Social Security Number
EMP_SSN	Char	9	Yes	Employee Social Security Number
EMP_NAME	Char	36	Yes	Employee Name
ADDRESS1	Char	24	Yes	
ADDRESS2	Char	24		
CITY	Char	17	Yes	
STATE	Char	2	Yes	
ZIP	Char	9	Yes	
HIREDATE	Char	8	Yes	MMDDYYYY
GENDER	Char	1	Yes	M = Male; F = Female
KVICODE	Char	3		"601"
PAYROLL	Char	2	Yes	
AGENCY	Char	3	Yes	
BILLTYPE	Char	1		[]= Blank; P = Payroll; D = Direct Billing
PERIOD	Char	1		[]=Blank; B = Biweekly;
W = Weekly; S = Semi monthly				
SALARY	Num	9	Yes	999999999
SMOKER	Char	1		[]=Blank; Y = Yes; N = No
EMP_BIRTH	Char	8	Yes	Employee Birth Date MMDDYYYY
LIFE_FACTOR	Char	1		
EMP_EFF	Char	8		Effective Date
EFF_TERM	Char	8		Termination Date
EMP_COVAMT	Num	3		Coverage Amount
SP_NAME	Char	35	Yes	Spouse Name
SP_SSN	Char	9		Spouse SS#
SP_BIRTH	Char	8	Yes	Spouse Birthdate MMDDYYYY
SP_TYPE	Char	1	Yes	S = Spouse; P = Domestic Partner;
X =Private Domestic Partner				
SP_EFF	Char	8		Spouse Effective Date
SP_TERM	Char	8		Spouse Termination Date
SP_COVAMT	Num	3		Spouse Coverage Amount
KID_EFF	Char	8		Child Effective Date
KID_TERM	Char	8		Child Termination Date
KID_COVTP	Char	1		Child Coverage Type
KID_COVNUM	Num	3		Number of Child
LIFEINSAMT	Num	6		Life Insurance Amount
EMP_CAAMT	Num	6		Employee Cash Amount
EMP_CAEFF	Char	8		Employee Cash Effective Date
EMP_CATERM	Char	8		Employee Cash Termination Date
SP_CAAMT	Num	6		Spouse Cash Amount
SP_CAEFF	Char	8		Spouse Cash Effective Date
SP_CATERM	Char	8		Spouse Cash Termination Date
DEDAMT	Num	6		Deduct Amount
GUL	Char	1		
MBF_TERM	Char	8		MBF Termination Date
FILLER	Char	30		

Exhibit II
NYC MANAGEMENT BENEFITS FUND
CARRIER RECONCILIATION FILE FORMAT

GROUP LIFE INSURANCE COVERAGE AMOUNT FILE LAYOUT

<u>Field Name</u>	<u>Type</u>	<u>Length</u>	<u>Format</u>	<u>Description</u>
EMP_SSN	Char	9		Employee Social Security Number
LASTNAME	Char	20		Employee Last Name
FIRSTNAME	Char	19		Employee First Name
MI	Char	1		Employee Middle Initial
ADDRESS1	Char	25		
ADDRESS2	Char	25		
CITY	Char	20		
STATE	Char	2		
ZIP	Char	9		
BILLTYPE	Char	1		P = Payroll; D = Direct Billing; O = Optional; T = Terminate
PERIOD	Char	1		W- weekly, B- Bi-Weekly, M- Monthly, Q- Quarterly, S-Semi-annually A- Annually
DEDAMT	Num	16	9(14)V99	Billing Amount
EMP_SMOKER	Char	1		[]=Blank; Y = Yes; N = No
EMP_BIRTH	Date	8	MMDDYYYY	Employee Birth Date
EMP_EFF	Date	8	MMDDYYYY	Coverage Effective Date
EFF_TERM	Date	8	MMDDYYYY	Overage Termination Date
EMP_COVAMT	Num	16	9(14)V99	Coverage Amount
EMP_CAAMT	Num	16	9(14)V99	Employee Cash Amount (Monthly)
EMP_CAEFF	Date	8	MMDDYYYY	Employee Cash Effective Date
EMP_CATERM	Date	8	MMDDYYYY	Employee Cash Termination Date
SP_NAME	Date	40		Spouse Name
SP_SSN	Char	9		Spouse SS#
SP_BIRTH	Date	8	MMDDYYYY	Spouse Birthdate
SP_TYPE	Char	1		S = Spouse/Domestic Partner
SP_EFF	Date	8	MMDDYYYY	Spouse Coverage Effective Date
SP_TERM	Date	8	MMDDYYYY	Spouse Coverage Termination Date
SP_COVAMT	Num	16	9(14)V99	Spouse Coverage Amount
SP_CAAMT	Num	16	9(14)V99	Spouse Cash Amount (Monthly)
SP_CAEFF	Date	8	MMDDYYYY	Spouse Cash Effective Date
SP_CATERM	Date	8	MMDDYYYY	Spouse Cash Termination Date
KID_COV	Char	1		[]=Blank; Y = Yes; N = No
FILLER	Char	56		

Total Length = 400

Exhibit III
NYC MANAGEMENT BENEFITS FUND
CARRIER BILLING FILE FORMAT

GROUP LIFE INSURANCE Billing File Layout

Field Name	Type	Length	Description
IDCODE	Char	3	"601"
EMP_NUM	Char	14	Employee Social Security Number
SSN	Char	9	
NAME	Char	30	
PAYCYCLE	Char	1	W = Weekly; B= Biweekly; S = Semimonthly
MONTH	Char	2	"01" = January; "12" = December
FILLER1	Char	5	Space
CHANGECD	Char	1	N = New; C = Change; D = Delete
FILLER2	Char	43	Space
DEDAMT	Char	7	0004572 =45.72
PAYROLL	Char	2	
AGENCY	Char	3	

Exhibit IV
NYC MANAGEMENT BENEFITS FUND
PAYMENT FILE FORMAT TO CARRIER

GROUP LIFE INSURANCE Monthly Payment File Layout

Field Name	Type	Length	Description
IDCODE	Char	3	“601”
EMP_NUM	Char	14	Employee Social Security Number
SSN	Char	9	Employee Social Security Number
EMP_NAME	Char	30	Employee Name
FILLER	Char	2	
FREQUENCY	Char	1	W = Weekly; B = Biweekly; S = Semimonthly
DEDAMT	Char	7	0002808 =28.08
DEDDATE	Char	8	MMDDYYYY
STATUSCD	Char	2	Status Code *
STATUSDT	Char	8	Status Change Date
PAYROLL	Char	2	
AGENCY	Char	3	
NEWPAYR	Char	2	New Payroll
NEWAGENCY	Char	3	New Agency

* Status Code

01 - ACTIVE

02 - TERMINATION

03 - DEDUCTION SHORTAGE

08 - TRANSFER

12 - ANY TYPE OF LEAVE OF ABSENCE (DIRECT BILL AT FIRST MISSED DEDUCTION)

20 - RETIRED

50 - TITLE TRANSFERS

ATTACHMENT A

A.1 – ACTIVE MEMBERS – AGE/SEX

As of 12/19/16

<u>Ages</u>	<u>Male</u>	<u>Female</u>	<u>Total</u>
Under 25	0	0	0
25-29	622	735	1357
30-34	983	1347	2330
35-39	974	1401	2375
40-44	853	1223	2076
45-49	968	1164	2132
50-54	1259	1287	2546
55-59	1225	1294	2519
60-64	908	861	1769
65 and Over	703	682	1385
TOTAL	8495	9994	18489

DEPENDENT RATIO: 39.28% Single Only
60.72% Member and Eligible Dependent(s)

A.2 – RETIREE MEMBERS – AGE/SEX

As of 12/19/16

<u>Ages</u>	<u>Male</u>	<u>Female</u>	<u>Total</u>
Under 25	0	0	0
25-29	0	0	0
30-34	0	0	0
35-39	0	0	0
40-44	2	2	4
45-49	8	1	9
50-54	31	14	45
55-59	163	122	285
60-64	535	481	1016
65 and Over	4782	3795	8577
TOTAL	5521	4415	9936

DEPENDENT RATIO: 38.81% Single Only
 61.19% Member and Eligible Dependent(s)

A.3 – TOTAL MEMBERS – AGE/SEX

As of 12/19/16

<u>Ages</u>	<u>Male</u>	<u>Female</u>	<u>Total</u>
Under 25	0	0	0
25-29	622	735	1357
30-34	983	1347	2330
35-39	974	1401	2375
40-44	855	1225	2080
45-49	976	1165	2141
50-54	1290	1301	2591
55-59	1388	1416	2804
60-64	1443	1342	2785
65 and Over	5485	4477	9962
TOTAL	14016	14409	28425

DEPENDENT RATIO: 39.12% Single Only
 60.88% Member and Eligible Dependent(s)

A.4 – MEMBER RESIDENCE

As of 12/19/16

	<u>Active</u>	<u>Retired</u>	<u>Total</u>
Manhattan	3752	1621	5373
Brooklyn	4751	1373	6124
Queens	3415	1449	4864
Bronx	1499	683	2182
Staten Island	1025	552	1577
Nassau/Suffolk	2022	1264	3286
Westchester/Rockland	315	171	486
New Jersey	1363	774	2137
Connecticut	71	65	136
Other	265	1995	2260
TOTAL	18478	9947	28425

A.5 – MEMBER RESIDENCE BY STATE - As of 12/19/16

<u>State</u>	<u>Active</u>	<u>Retired</u>	<u>Total</u>
ALABAMA (AL)	0	5	5
ALASKA (AK)	0	0	0
ARIZONA (AZ)	0	40	40
ARKANSAS (AR)	0	1	1
CALIFORNIA (CA)	2	69	71
COLORADO (CO)	0	8	8
CONNECTICUT (CT)	71	65	136
DELAWARE (DE)	1	26	27
DISTRICT OF COLUMBIA (DC)	9	7	16
FLORIDA (FL)	1	782	782
GEORGIA (GA)	0	100	100
HAWAII (HI)	0	1	1
IDAHO (ID)	0	1	1
ILLINOIS (IL)	2	11	13
INDIANA (IN)	1	6	7
IOWA (IA)	0	1	1
KANSAS (KS)	0	1	1
KENTUCKY (KY)	0	2	2
LOUISIANA (LA)	0	5	5
MAINE (ME)	1	8	9
MARYLAND (MD)	2	46	48
MASSACHUSETTS (MA)	2	36	38
MICHIGAN (MI)	0	8	8
MINNESOTA (MN)	0	3	3
MISSISSIPPI (MS)	0	1	1
MISSOURI (MO)	0	4	4
MONTANA (MT)	0	0	0
NEBRASKA (NE)	0	0	0

NEVADA (NV)	0	38	38
NEW HAMPSHIRE (NH)	1	11	12
NEW JERSEY (NJ)	1363	774	2137
NEW MEXICO (NM)	1	11	12
NEW YORK (NY)	16949	7334	24283
NORTH CAROLINA (NC)	1	121	122
NORTH DAKOTA (ND)	0	0	0
OHIO (OH)	1	11	12
OKLAHOMA (OK)	0	3	3
OREGON (OR)	0	6	6
PENNSYLVANIA (PA)	66	124	190
PUERTO RICO (PR)	0	28	28
RHODE ISLAND (RI)	0	4	4
SOUTH CAROLINA (SC)	0	77	77
SOUTH DAKOTA (SD)	0	0	0
TENNESSEE (TN)	0	9	9
TEXAS (TX)	0	36	36
UTAH (UT)	0	2	2
VERMONT (VT)	0	10	10
VIRGINIA (VA)	3	84	87
WASHINGTON (WA)	0	6	6
WEST VIRGINIA (WV)	0	3	3
WISCONSIN (WI)	0	0	0
WYOMING (WY)	0	0	0
OTHER	2	18	20
TOTAL:	18478	9947	28425

ATTACHMENT B - CURRENT GUL PLAN PARTICIPATION**City of New York
Group Universal Life Insurance Program****Comparison of Certificate Totals**

	12/31/11	12/31/12	12/31/13	12/31/14	12/31/15	6/30/16	Increase (Decrease)
Payroll Deduction							
Member	5,391	5,689	5,462	5,413	5,528	5,549	158
Spouse/DP	2163	2,249	2,157	2,155	2,186	2,173	10
TOTAL	7,554	7,938	7,619	7,568	7,714	7,722	168

	12/31/11	12/31/12	12/31/13	12/31/14	12/31/15	6/30/16	Increase (Decrease)
Direct Bill							
Member	2,965	3,050	3,302	3,400	3,437	3,676	711
Spouse/DP	1,249	1,275	1,372	1,410	1,432	1,520	271
TOTAL	4,214	4,325	4,674	4,809	4,869	5,196	982

	12/31/11	12/31/12	12/31/13	12/31/14	12/31/15	6/30/16	Increase (Decrease)
Combined							
Member	8,356	8,739	8,764	8,813	8,965	9,225	869
Spouse/DP	3,412	3,524	3,529	3,564	3,618	3,693	281
TOTAL	11,768	12,263	12,293	12,377	12,583	12,918	1,150

Pay Roll Child Riders	1,360	1,411	1,352	1,322	1,316	1291	(69)
Direct Bill Child Riders	477	475	501	524	516	534	57

Port	181	190	181	167	155	152	(29)
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TOTAL COVERAGE IN FORCE (000's omitted)

	12/31/11	12/31/12	12/31/13	12/31/14	12/31/15	6/30/16	Increase (Decrease)
Pay Roll Deduction							
Member	1,261,907	1,331,388	1,435,507	1,493,970	1,591,578	1,706,625	444,718
Spouse/DP	181,563	191,292	206,572	209,600	214,683	215,865	34,302
Child	13,117	14,624	16,020	16,598	17,251	17,527	4,410
Direct Bill							
Member	405,392	430,136	507,931	555,185	585,891	662,851	257,459
Spouse/DP	62,058	66,223	76,029	82,211	86,165	97,333	35,275
Child	3,953	3,947	4,319	4,742	4,839	5,266	1,313
Combined							
Member	1,667,299	1,761,525	1,943,438	2,049,155	2,177,469	2,369,476	702,177
Spouse/DP	243,621	257,514	282,601	291,812	300,848	313,199	69,578
Child	17,070	18,570	20,339	21,339	22,091	22,793	5,723

Port	22,064	22,905	21,457	19,390	18,167	18,861	(3203)
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ATTACHMENT C - FIVE YEAR RATE HISTORY

Rates 1/1/2008 through 4/1/2012

Monthly Cost of Insurance
(per \$1000 coverage unit)

Age	Member Non-Smoker Rate	Member Smoker Rate	Spouse Rate	Monthly maximum CAF contributions*
Under 30	0.061	0.069	0.047	0.56
30-34	0.066	0.080	0.054	1.36
35-39	0.082	0.090	0.087	2.24
40-44	0.108	0.122	0.128	2.90
45-49	0.156	0.181	0.215	3.70
50-54	0.252	0.297	0.310	4.49
55-59	0.372	0.445	0.484	5.25
60-64	0.617	0.742	0.672	6.06
65-69	1.073	1.271	0.928	6.58
70-74	1.293	1.663	1.667	7.49
75-79	1.632	2.130	2.145	7.70
80-84	3.561	4.312	4.568	**
85-89	5.565	6.702	7.766	**
90-94	7.954	9.615	11.279	**
95-99	10.576	12.791	14.977	**

Child Coverage: \$0.326 per month per \$4,000 coverage.

*These maximums are estimates of the amounts that can be contributed to the CAF without failing Definition of Life Insurance Testing. These maximums are not designed to prevent Modified Endowment Contract status. These maximums will change if certain changes are made to the certificate, including face amount charges.

** Please contact the Fund for these rates if needed.

ATTACHMENT C - FIVE YEAR RATE HISTORY, Continued

Rates Effective 4/1/2012 to Present

Monthly Cost of Insurance

(per \$1000 coverage unit)

Age	Member Non-Smoker Rate	Member Smoker Rate	Spouse Rate	Monthly maximum CAF contributions*
Under 30	0.049	0.056	0.038	
30-34	0.054	0.065	0.044	
35-39	0.067	0.073	0.071	
40-44	0.089	0.099	0.104	
45-49	0.127	0.147	0.175	
50-54	0.205	0.241	0.252	
55-59	0.302	0.361	0.393	
60-64	0.502	0.603	0.546	
65-69	0.871	1.032	0.754	
70-74	1.050	1.350	1.354	
75-79	1.325	1.730	1.742	
80-84	\$2.892	3.884	4.132	
85-89	\$4.519	6.038	6.996	
90-94	\$6.459	8.662	10.160	
95-99	\$8.588	11.523	13.492	

Child Coverage:

\$0.295 per \$10,000
coverage.

Optional Life rates

Age	Non-Smoker	Smoker	Spouse
0-29	.12	.14	.06
30-34	.13	.16	.07
35-39	.17	.20	.12
40-44	.22	.28	.17
45-49	.33	.45	.29
50-54	.54	.66	.42
55-59	.83	.95	.65
60-64	1.24	1.56	.91
65-69	1.99	2.24	1.25
70-74	2.25	2.90	1.65
75-79	2.80	3.70	1.65
80-99	6.20	7.90	1.65

**ATTACHMENT D - PREDECESSOR OPTIONAL TERM LIFE
INSURANCE PLAN PARTICIPATION**

OPTIONAL TERM LIFE INSURANCE PARTICIPATION:

Comparison of Certificate Totals

	12/31/11	12/31/12	12/31/13	12/31/14	12/31/15	6/30/16	Increase (Decrease)
Member	63	56	51	42	36	33	(30)
Spouse/DP	25	22	20	14	12	9	(16)
TOTAL	88	78	71	57	48	42	(46)

TOTAL COVERAGE IN FORCE (000's omitted)

	12/31/11	12/31/12	12/31/13	12/31/14	12/31/15	6/30/16	Increase (Decrease)
Member	3,131	2,767	2,470	2,101	1,680	1,573	(1,558)
Spouse/DP	343	294	267	189	161	124	(219)

TOTAL EXPERIENCE (000's omitted)

Premium Data

	12/31/2011	12/31/2012	12/31/2013	12/31/2014	12/31/2015	6/30/2016	TOTAL
Member PREMIUM (000 Omitted)	175	168	156	135	104	45	783
Spouse/DP PREMIUM (000 Omitted)	6	6	5	3	3	1	24

**ATTACHMENT D - PREDECESSOR OPTIONAL TERM LIFE
INSURANCE PLAN PARTICIPATION, Continued**

Claim Data

	12/31/2011	12/31/2012	12/31/2013	12/31/2014	12/31/2015	6/30/2016	TOTAL
Member CHARGED CLAIMS (000 Omitted)	382	17	222	409	213	351	1,594
Member CONVERSION CHARGES (000 Omitted)	0	0	0	0	0	0	0
NO. of CLAIMS	6	2	5	9	3	0	25
Spouse/DP CHARGED CLAIMS (000 Omitted)	42	20	7	0	27	0	96
Spouse/DP CONVERSION CHARGES (000 Omitted)	0	0	0	0	0	0	0
NO. of CLAIMS	2	1	1	0	2	0	0

LOSS RATIO	12/31/2011	12/31/2012	12/31/2013	12/31/2014	12/31/2015	6/30/2016	
							TOTAL
Member Loss Ratio	205.95%	10.14%	141.93%	303.91%	205.95%	44.10%	203.76%
Spouse Loss Ratio	814.42%	356.16%	136.65%	0.00%	814.42%	0.00%	400.00%

ATTACHMENT E - PREMIUM/CLAIMS EXPERIENCE**City of New York
Group Universal Life Program**

	12/31/11	12/31/12	12/31/13	12/31/14	12/31/15	6/30/16
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NO OF CERTS	11,768	12,263	12,293	12,377	12,583	12,918
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Premium Data

	12/31/2011	12/31/2012	12/31/2013	12/31/2014	12/31/2015	6/30/2016	TOTAL
Payroll Deduction							
Member PREMIUM (000 Omitted)	3,643	3,531	3,779	3,661	4,197	2,293	18,812
Spouse/DP PREMIUM (000 Omitted)	543	520	552	524	597	277	2,736
Child PREMIUM (000 Omitted)	5	5	6	5	6	3	27

	12/31/2011	12/31/2012	12/31/2013	12/31/2014	12/31/2015	6/30/2016	TOTAL
Direct Bill							
Member PREMIUM (000 Omitted)	2,913	2,886	3,183	3,587	4,026	2,565	16,595
Spouse/DP PREMIUM (000 Omitted)	467	461	501	551	622	336	2,602
Child PREMIUM (000 Omitted)	1	1	2	2	2	1	8

	12/31/2011	12/31/2012	12/31/2013	12/31/2014	12/31/2015	6/30/2016	TOTAL
Total							
Member PREMIUM (000 Omitted)	6,556	6,417	6,963	7,248	8,223	4,858	35,407
Spouse/DP PREMIUM (000 Omitted)	1,010	982	1,053	1,075	1,219	613	5,338
Child PREMIUM (000 Omitted)	6	7	7	7	8	4	35

ATTACHMENT E - PREMIUM/CLAIMS EXPERIENCE, Continued

Claim Data

Pay Roll Claim Data:

	12/31/2011	12/31/2012	12/31/2013	12/31/2014	12/31/2015	6/30/2016	TOTAL
Payroll Deduction							
Member CHARGED CLAIMS (000 Omitted)	1,614	1,891	2,830	1,836	2,322	351	10,493
Member CONVERSION CHARGES (000 Omitted)	0	0	0	0	0	0	0
NO. OF CLAIMS	9	9	8	11	10	2	47
Spouse/DP CHARGED CLAIMS (000 Omitted)	190	294	280	160	220	150	1,145
Spouse/DP CONVERSION CHARGES (000 Omitted)	0	0	0	0	0	0	0
NO. OF CLAIMS	5	7	4	4	9	4	29
Child CHARGED CLAIMS (000 Omitted)	0	0	0	0	0	0	0
Child CONVERSION CHARGES (000 Omitted)	0	0	0	0	0	0	0
NO. OF CLAIMS	0	0	0	0	0	0	0

Direct Bill Claim Data:

	12/31/2011	12/31/2012	12/31/2013	12/31/2014	12/31/2015	6/30/2016	TOTAL
Direct Bill							
Member CHARGED CLAIMS (000 Omitted)	5,173	3,376	3,156	6,014	5,745	3,789	23,465
Member CONVERSION CHARGES (000 Omitted)	0	0	0	0	0	0	0
NO. OF CLAIMS	50	39	32	55	49	28	225
Spouse/DP CHARGED CLAIMS (000 Omitted)	440	670	740	540	681	490	3,071

ATTACHMENT E - PREMIUM/CLAIMS EXPERIENCE, Continued

Spouse/DP CONVERSION CHARGES (000 Omitted)	0	0	0	0	0	26	0
NO. OF CLAIMS	11	18	23	21	25	14	98
Child CHARGED CLAIMS (000 Omitted)	0	0	0	0	0	0	0
Child CONVERSION CHARGES (000 Omitted)	0	0	0	0	0	0	0
NO. OF CLAIMS	0	0	0	0	0	0	0

Pay Roll Deduction & Pay
Roll Deduction Claim Data
Combined:

	12/31/2011	12/31/2012	12/31/2013	12/31/2014	12/31/2015	6/30/2016	TOTAL
Total							
Member CHARGED CLAIMS (000 Omitted)	1,614	1,891	2,830	1,836	2,322	351	10,493
Member CONVERSION CHARGES (000 Omitted)	5,173	3,376	3,156	6,014	5,745	3,789	23,465
NO. OF CLAIMS	9	9	8	11	10	2	47
Spouse/DP CHARGED CLAIMS (000 Omitted)	240	333	312	215	269	178	1,370
Spouse/DP CONVERSION CHARGES (000 Omitted)	440	670	740	540	681	490	3,071
NO. OF CLAIMS	5	7	4	4	9	30	29
Child CHARGED CLAIMS (000 Omitted)	11	18	23	21	25	14	98
Child CONVERSION CHARGES (000 Omitted)	0	0	0	0	0	0	0
NO. OF CLAIMS	0	0	0	0	0	0	0

ATTACHMENT E - PREMIUM/CLAIMS EXPERIENCE, Continued

Loss Ratio

	12/31/2011	12/31/2012	12/31/2013	12/31/2014	12/31/2015	6/30/2016	TOTAL
Loss Ratio							
Member Pay Roll	44.31%	53.55%	74.88%	50.15%	55.33%	15.33%	55.78%
Member Direct Bill	177.61%	116.97%	99.15%	167.66%	142.70%	147.73%	141.39%
Combined Member	103.53%	82.07%	85.98%	108.30%	98.11%	85.24%	95.91%
Spouse/DP Pay Roll Deduction	35.01%	56.48%	50.80%	30.58%	36.88%	54.23%	41.83%
Spouse/DP Direct Bill	94.28%	145.34%	147.57%	98.09%	109.49%	153.76%	118.04%
Combined Spouse/DP	67.35%	102.20%	99.91%	70.30%	77.94%	109.09%	83.19%
Child Pay Roll Deduction	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%
Child Direct Bill	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%
Combined Child	171.97%	272.07%	321.59%	295.95%	320.11%	359.56%	279.44%

Port Experience

	12/31/2011	12/31/2012	12/31/2013	12/31/2014	12/31/2015	6/30/2016	TOTAL
Port Premium (000 omitted)							
Member	59	62	61	63	63	33	341
Spouse/DP	15	14	14	13	12	7	75
Child	0.052	0.064	0.064	0.057	0.057	0.027	0.321
TOTAL	74	76	75	75	76	40	416
Port Charged Claims (000 omitted)							
Member	0	0	0	0	0	0	0
Spouse/DP	0	0	0	0	0	0	0
Child	0	0	0	0	0	0	0
TOTAL	0	0	0	0	0	0	0
	12/31/2011	12/31/2012	12/31/2013	12/31/2014	12/31/2015	6/30/2016	TOTAL
Loss Ratio							
Member	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%
Spouse/DP	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%
Child	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%

ATTACHMENT F – Cash Accumulation Fund Contributions

**City of New York
Group Universal Life Program**

	12/31/11	12/31/12	12/31/13	12/31/14	12/31/15	6/30/16	Increase (Decrease)
Payroll Deduction							
Number of Participants	527	535	495	542	540	538	11
Avg. Monthly Contribution	69	99	95	78	107	80	19
Total Monthly Contribution	36,266	52,885	46,810	42,009	57,884	43,287	7,021

	12/31/11	12/31/12	12/31/13	12/31/14	12/31/15	6/30/16	Increase (Decrease)
Direct Bill							
Number of Participants	442	440	478	470	487	486	44
Avg. Monthly Contribution	56	55	52	37	43	74	20
Total Monthly Contribution	24,534	24,100	25,003	17,511	21,133	35,984	11,450

	12/31/11	12/31/12	12/31/13	12/31/14	12/31/15	6/30/16	Increase (Decrease)
Combined							
Number of Participants	969	975	973	1,012	1,027	1,024	55
Avg. Monthly Contribution	63	79	74	59	77	77	39
Total Monthly Contribution	60,800	76,984	71,813	59,521	79,017	79,271	18,471

ATTACHMENT G – Volume of Insurance by Age

GUL Member Non-Smoker		
	Lives	Volume
LT 30	128	\$22,242,000
30-34	373	\$94,955,000
35-39	591	\$192,488,000
40-44	766	\$258,934,000
45-49	921	\$310,854,000
50-54	1,179	\$357,362,000
55-59	1,316	\$369,265,000
60-64	1,109	\$264,081,000
65-69	921	\$178,139,000
70-74	541	\$76,156,000
75-79	319	\$34,444,000
80-84	161	\$10,655,000
85-89	91	\$4,500,000
90-94	19	\$1,209,000
95-99	3	\$227,000
TOTAL	8,438	\$2,175,511,000

GUL Member Smoker		
	Lives	Volume
LT 30	5	\$586,000
30-34	24	\$5,414,000
35-39	42	\$14,702,000
40-44	51	\$17,635,000
45-49	59	\$18,603,000
50-54	98	\$24,352,000
55-59	118	\$32,373,000
60-64	117	\$22,706,000
65-69	81	\$13,566,000
70-74	68	\$7,914,000
75-79	24	\$1,998,000
80-84	6	\$237,000
85-89	2	\$138,000
90-94	1	\$50,000
95-99	0	\$0
TOTAL	696	\$160,274,000

ATTACHMENT G – Volume of Insurance by Age, Continued

Dependent GUL - Spouse		
	Lives	Volume
LT 30	20	\$1,840,000
30-34	130	\$17,120,000
35-39	265	\$36,170,000
40-44	326	\$37,870,000
45-49	409	\$47,230,000
50-54	498	\$46,840,000
55-59	528	\$38,720,000
60-64	524	\$33,056,000
65-69	436	\$23,693,000
70-74	195	\$10,015,000
75-79	108	\$4,170,000
80-84	49	\$1,870,000
85-89	7	\$180,000
90-94	3	\$80,000
95-99	0	\$0
TOTAL	3,498	\$298,854,000

Dependent GUL - Child		
	Lives	Volume
	1,806	\$22,551,000

ATTACHMENT H

SECTION C OF THE FUND’S BENEFITS BOOKLET ENTITLED “GROUP UNIVERSAL LIFE INSURANCE”

You can access Section C entitled “Group Universal Life Insurance,” which is part of the Fund’s Benefits Booklet, at <http://www1.nyc.gov/assets/olr/downloads/pdf/mbf/gul-section-of-the-booklet.pdf>

ATTACHMENT I

Attachment I consists of the Doing Business Accountability Project Data Form (PDF) and the Doing Business Accountability Project FAQ (PDF).

Please download a copy of this form by registering for the PROPOSAL SECTION of the OLR website by clicking on the link below. The Document is located in the section marked **IMPORTANT**, along with the other required documents. You should submit this form to us in your proposal.

<http://www1.nyc.gov/site/olr/about/about-rfp.page>

THESE FORMS MAY BE DOWNLOADED FROM NYC WEB SITE, LOCATED AT:

http://www1.nyc.gov/assets/hra/downloads/pdf/business/doing_business_data_form.pdf

ATTACHMENT J

WHISTLEBLOWER PROTECTION EXPANSION ACT

1. In accordance with Local Law Nos. 30-2012 and 33-2012, codified at sections 6-132 and 12-113 of the New York City Administrative Code, respectively,

- (a) Contractor shall not take an adverse personnel action with respect to an officer or employee in retaliation for such officer or employee making a report of information concerning conduct which such officer or employee knows or reasonably believes to involve corruption, criminal activity, conflict of interest, gross mismanagement or abuse of authority by any officer or employee relating to this Contract to (i) the Commissioner of the Department of Investigation, (ii) a member of the New York City Council, the Public Advocate, or the Comptroller, or (iii) the City Chief Procurement Officer, ACCO, Agency head, or Commissioner.
- (b) If any of Contractor's officers or employees believes that he or she has been the subject of an adverse personnel action in violation of subparagraph (a) of paragraph 1 of this rider, he or she shall be entitled to bring a cause of action against Contractor to recover all relief necessary to make him or her whole. Such relief may include but is not limited to: (i) an injunction to restrain continued retaliation, (ii) reinstatement to the position such employee would have had but for the retaliation or to an equivalent position, (iii) reinstatement of full fringe benefits and seniority rights, (iv) payment of two times back pay, plus interest, and (v) compensation for any special damages sustained as a result of the retaliation, including litigation costs and reasonable attorney's fees.
- (c) Contractor shall post a notice provided by the City in a prominent and accessible place on any site where work pursuant to the Contract is performed that contains information about:
 - (i) how its employees can report to the New York City Department of Investigation allegations of fraud, false claims, criminality or corruption arising out of or in connection with the Contract; and
 - (ii) the rights and remedies afforded to its employees under New York City Administrative Code sections 7-805 (the New York City False Claims Act) and 12-113 (the Whistleblower Protection Expansion Act) for lawful acts taken in connection with the reporting of allegations of fraud, false claims, criminality or corruption in connection with the Contract.
- (d) For the purposes of this rider, "adverse personnel action" includes dismissal, demotion, suspension, disciplinary action, negative performance evaluation, any action resulting in loss of staff, office space, equipment or other benefit, failure to appoint, failure to promote, or any transfer or assignment or failure to transfer or assign against the wishes of the affected officer or employee.
- (e) This rider is applicable to all of Contractor's subcontractors having subcontracts with a value in excess of \$100,000; accordingly, Contractor shall include this rider in all subcontracts with a value a value in excess of \$100,000.

2. Paragraph 1 is not applicable to this Contract if it is valued at \$100,000 or less. Subparagraphs (a), (b), (d), and (e) of paragraph 1 are not applicable to this Contract if it was solicited pursuant to a finding of an emergency. Subparagraph (c) of paragraph 1 is neither applicable to this Contract if it was solicited prior to October 18, 2012 nor if it is a renewal of a contract executed prior to October 18, 2012.

ATTACHMENT K - IRAN DIVESTMENT ACT RIDER

Please download a copy of this Rider and the required Certification Form by registering for the PROPOSAL SECTION of the OLR website by clicking on the link below. The Document is located in the section marked **IMPORTANT**, along with the other required documents. You should sign the certification and submit to us along with the Doing Business Data Form, in your proposal.

<http://www1.nyc.gov/site/olr/about/about-rfp.page>

See also the following link for additional information about The Iran Investment Act:

<http://www.ogs.ny.gov/About/regs/ida.asp>

ATTACHMENT L – SCHEDULE B: SUBCONTRACTOR UTILIZATION PLAN/WAIVER APPLICATION

Please download a copy of this document by registering for the PROPOSAL SECTION of the OLR website by clicking on the link below. The Document is located in the section marked **IMPORTANT**, along with the other required documents.

<http://www1.nyc.gov/site/olr/about/about-rfp.page>

ATTACHMENT M – SUBCONTRACTOR COMPLIANCE FORM

Please download a copy of this document by registering for the PROPOSAL SECTION of the OLR website by clicking on the link below. The Document is located in the section marked **IMPORTANT**, along with the other required documents.

<http://www1.nyc.gov/site/olr/about/about-rfp.page>

ATTACHMENT N: HIRING AND EMPLOYMENT RIDER

Please download a copy of this document by registering for the PROPOSAL SECTION of the OLR website by clicking on the link below. The Document is located in the section marked **IMPORTANT**, along with the other required documents.

<http://www1.nyc.gov/site/olr/about/about-rfp.page>

This document can also be downloaded by clicking on the below link:

http://www.nyc.gov/html/dycd/downloads/pdf/rfps/attachment_12_hiring_and_employment_rider.pdf

ATTACHMENT O: PAID SICK LEAVE LAW RIDER

Please download a copy of this document by registering for the PROPOSAL SECTION of the OLR website by clicking on the link below. The Document is located in the section marked **IMPORTANT**, along with the other required documents.

<http://www1.nyc.gov/site/olr/about/about-rfp.page>

This document can also be downloaded by clicking on the below link:

http://www.nyc.gov/html/prob/downloads/pdf/tech_rfp_attach_9_paid_sick_leave_rider.pdf